



Manage and maintain workplace relations

D1.HML.CL10.17

D1.HRM.CL9.15

D2.TRM.CL9.14

Trainee Manual



Angliss
Institute

for foods, tourism
& hospitality

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The Association of Southeast Asian Nations (ASEAN) was established on 8 August 1967. The Member States of the Association are Brunei Darussalam, Cambodia, Indonesia, Lao PDR, Malaysia, Myanmar, Philippines, Singapore, Thailand and Viet Nam.

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Introduction to trainee manual

To the Trainee

Congratulations on joining this course. This Trainee Manual is one part of a 'toolbox' which is a resource provided to trainees, trainers and assessors to help you become competent in various areas of your work.

The 'toolbox' consists of three elements:

- A Trainee Manual for you to read and study at home or in class
- A Trainer Guide with Power Point slides to help your Trainer explain the content of the training material and provide class activities to help with practice
- An Assessment Manual which provides your Assessor with oral and written questions and other assessment tasks to establish whether or not you have achieved competency.

The first thing you may notice is that this training program and the information you find in the Trainee Manual seems different to the textbooks you have used previously. This is because the method of instruction and examination is different. The method used is called Competency based training (CBT) and Competency based assessment (CBA). CBT and CBA is the training and assessment system chosen by ASEAN (Association of South-East Asian Nations) to train people to work in the tourism and hospitality industry throughout all the ASEAN member states.

What is the CBT and CBA system and why has it been adopted by ASEAN?

CBT is a way of training that concentrates on what a worker can do or is required to do at work. The aim is of the training is to enable trainees to perform tasks and duties at a standard expected by employers. CBT seeks to develop the skills, knowledge and attitudes (or recognise the ones the trainee already possesses) to achieve the required competency standard. ASEAN has adopted the CBT/CBA training system as it is able to produce the type of worker that industry is looking for and this therefore increases trainee chances of obtaining employment.

CBA involves collecting evidence and making a judgement of the extent to which a worker can perform his/her duties at the required competency standard. Where a trainee can already demonstrate a degree of competency, either due to prior training or work experience, a process of 'Recognition of Prior Learning' (RPL) is available to trainees to recognise this. Please speak to your trainer about RPL if you think this applies to you.

What is a competency standard?

Competency standards are descriptions of the skills and knowledge required to perform a task or activity at the level of a required standard.

242 competency standards for the tourism and hospitality industries throughout the ASEAN region have been developed to cover all the knowledge, skills and attitudes required to work in the following occupational areas:

- Housekeeping
- Food Production
- Food and Beverage Service
- Front Office

- Travel Agencies
- Tour Operations.

All of these competency standards are available for you to look at. In fact you will find a summary of each one at the beginning of each Trainee Manual under the heading 'Unit Descriptor'. The unit descriptor describes the content of the unit you will be studying in the Trainee Manual and provides a table of contents which are divided up into 'Elements' and 'Performance Criteria'. An element is a description of one aspect of what has to be achieved in the workplace. The 'Performance Criteria' below each element details the level of performance that needs to be demonstrated to be declared competent.

There are other components of the competency standard:

- *Unit Title*: statement about what is to be done in the workplace
- *Unit Number*: unique number identifying the particular competency
- *Nominal hours*: number of classroom or practical hours usually needed to complete the competency. We call them 'nominal' hours because they can vary e.g. sometimes it will take an individual less time to complete a unit of competency because he/she has prior knowledge or work experience in that area.

The final heading you will see before you start reading the Trainee Manual is the 'Assessment Matrix'. Competency based assessment requires trainees to be assessed in at least 2 – 3 different ways, one of which must be practical. This section outlines three ways assessment can be carried out and includes work projects, written questions and oral questions. The matrix is designed to show you which performance criteria will be assessed and how they will be assessed. Your trainer and/or assessor may also use other assessment methods including 'Observation Checklist' and 'Third Party Statement'. An observation checklist is a way of recording how you perform at work and a third party statement is a statement by a supervisor or employer about the degree of competence they believe you have achieved. This can be based on observing your workplace performance, inspecting your work or gaining feedback from fellow workers.

Your trainer and/or assessor may use other methods to assess you such as:

- Journals
- Oral presentations
- Role plays
- Log books
- Group projects
- Practical demonstrations.

Remember your trainer is there to help you succeed and become competent. Please feel free to ask him or her for more explanation of what you have just read and of what is expected from you and best wishes for your future studies and future career in tourism and hospitality.

Unit descriptor

Manage and maintain workplace relations

This unit deals with the skills and knowledge required to Manage and maintain workplace relations in a range of settings within the travel industries workplace context.

Unit Code:

D1.HML.CL10.17

D1.HRM.CL9.15

D2.TRM.CL9.14

Nominal Hours:

70

Element 1: Build a positive industrial relations climate

Performance Criteria

- 1.1 Provide employees with accurate and impartial information on industrial matters likely to affect them
- 1.2 Identify workplace changes or issues which may cause industrial unrest promptly and take appropriate action
- 1.3 Identify potential causes of industrial unrest in external environments promptly and take appropriate action
- 1.4 Apply conditions of employment in accordance with relevant legislation and industrial awards/agreements
- 1.5 Implement mechanisms for consulting with staff and facilitating two-way communication
- 1.6 Ensure induction and training initiatives are used effectively to develop a competent workforce
- 1.7 Utilise consultation processes for the identification and resolution of grievances and the implementation of new work practices

Element 2: Implement formal industrial procedures

Performance Criteria

- 2.1 Contribute to the development of formal industrial procedures in consultation with relevant parties
- 2.2 Use agreed procedures to resolve employee relations in accordance with enterprise policy and legal requirements
- 2.3 Monitor agreed processes and make appropriate adjustments in consultation with relevant parties.
- 2.4 Identify the need for and access specialist assistance in industrial relations matters when appropriate

Assessment matrix

Showing mapping of Performance Criteria against Work Projects, Written Questions and Oral Questions

The Assessment Matrix indicates three of the most common assessment activities your Assessor may use to assess your understanding of the content of this manual and your performance - Work Projects, Written Questions and Oral Questions. It also indicates where you can find the subject content related to these assessment activities in the Trainee Manual (i.e. under which element or performance criteria). As explained in the Introduction, however, the assessors are free to choose which assessment activities are most suitable to best capture evidence of competency as they deem appropriate for individual students.

		Work Projects	Written Questions	Oral Questions
Element 1: Build a positive industrial relations climate				
1.1	Provide employees with accurate and impartial information on industrial matters likely to affect them	1.1	1 – 10	1
1.2	Identify workplace changes or issues which may cause industrial unrest promptly and take appropriate action	1.1	11 – 16	2
1.3	Identify potential causes of industrial unrest in external environments promptly and take appropriate action	1.1	17, 18, 19	3
1.4	Apply conditions of employment in accordance with relevant legislation and industrial awards/agreements	1.1	20, 21, 22	4
1.5	Implement mechanisms for consulting with staff and facilitating two-way communication	1.1	23 – 26	5
1.6	Ensure induction and training initiatives are used effectively to develop a competent workforce	1.1	27 – 30	6
1.7	Utilise consultation processes for the identification and resolution of grievances and the implementation of new work practices	1.1	31 – 35	7

		Work Projects	Written Questions	Oral Questions
Element 2: Implement formal industrial procedures				
2.1	Contribute to the development of formal industrial procedures in consultation with relevant parties	2.1	36 – 39	8
2.2	Use agreed procedures to resolve employee relations in accordance with enterprise policy and legal requirements	2.1	40, 41, 42	9
2.3	Monitor agreed processes and make appropriate adjustments in consultation with relevant parties.	2.1	43, 44, 45	10
2.4	Identify the need for and access specialist assistance in industrial relations matters when appropriate	2.1	46, 47	11

Glossary

Term	Explanation
ASEAN	Association of Southeast Asian Nations
Arbitration	Using a third party to determine a workplace issue/conflict – their decision is final and parties agree to abide by what they decide
Award	Agreed set of legally enforceable working conditions and pay rates for designated workers
Bipartite	Consisting of two parties – for example, employers and employees
CBA	Competency Based Assessment
CBI	Computer Based Instruction
CBT	Competency Based Training
CV	(Latin) <i>Curriculum Vitae</i> (Resumé)
Conciliation	Process of using a third party to help negotiate a solution/resolution when there is disagreement/conflict between employers and employees
Cross-skilling	See Multi-skilling
E-learning	Electronic learning
Employment instrument	Also known as 'industrial instrument': the terms and conditions of employment
F/T	Full-time
Flexi-time	An arrangement where employees can choose to work their allocated hours at times and on days which best suit them in consultation/agreement from the employer
Grapevine	Informal channel/s of communication within an organisation
HR	Human Relations
Hard copy information	Paper-based information/handouts/booklets/manuals or checklists
IR	Industrial Relations

Term	Explanation
KPI	Key Performance Indicators
KSC	Key Selection Criteria
Log of claims	List of claims that workers/a union want as part of contract/workplace negotiations when there is industrial unrest/action
MBWA	Management By Walking Around
Member States	The ASEAN Member States: Brunei Darussalam; Cambodia; Indonesia; Lao PDR; Malaysia; Myanmar; Philippines; Singapore; Thailand; Viet Nam
Moodle	An e-learning option. An acronym standing for 'Modular object-oriented dynamic learning environment'
Multi-skilling	Training staff in other areas/competencies than those required by their current role so they can work in other roles/positions
OHS	OHS refers to 'Occupational Health and Safety'. In some countries the term OSH 'Occupational Safety and Health' is used. The concept is identical and relates to workplace health and safety policies, procedures and practices
Out-sourcing	Obtaining services from another business outside the organisation
PD	Professional development
PD	Position Description
PR	Public Relations
P/T	Part-time
Parity	Being equal to/the same as others
Q&A session	Question and Answer session
Remuneration	Wages, salary, payment to staff
Reps	Abbreviation of 'representatives'
SOP	Standard Operating Procedure
SWOT analysis	Analysis of the Strengths, Weaknesses, Opportunities and Threats facing the business

Term	Explanation
Soft copy information	Electronic information – emails, intranet
Spread of hours	The time within which the working day of a staff member must occur: for example, an eight hour day must be worked within 12 hours
TEL	Technology Enhanced Learning
TOIL	Time Off In Lieu
Tele-commuting	Working from home and sending work done into the employer by (for example) email
Tripartite	Comprising three parties (for example) government, employers and employees
Up-skilling	Training staff to extend/expand their capabilities and competence

Element 1:

Build a positive industrial relations climate

1.1 Provide employees with accurate and impartial information on industrial matters likely to affect them

Introduction

One of the foundation steps in building a positive industrial relations climate in an organisation is to provide correct workplace information to employees.

This section gives a context for the unit and IR generally, introduces ASEAN Guidelines of good IR, addresses conditions of employment with reference to background information, content and examples of same, mentions certain employment-related documents such as Letters of Offer, Employee Files and Job Statements before considering Industrial matters and listing potential options for sourcing relevant information.

Understanding the context for the unit

This unit:

- Deals with the skills and knowledge required to manage and maintain workplace relations in a range of settings within the hotel industries workplace context
- Is intended for management-level employees and workplace supervisors
- Must accommodate:
 - The legislation and local laws which apply to individual countries and specific industries
 - The requirements which apply to different employers as they have established and operate their own protocols relating to workplace relations.



Defining the context for ASEAN Industrial Relations

The ASEAN Ministers of Labour have adopted a set of 'Guidelines on Good Industrial Relations Practice' (see reference under 'Websites' below' for location), which states (in part):

- "...in the time of globalization, growing economic integration, and a rapidly changing and highly competitive business environment, establishing good industrial relations practices is a progressive and essential step to enhance the competitiveness of ASEAN and make it a choice destination of global investments and businesses

- One of the important principles in the ASEAN Charter is respect for fundamental freedoms, the promotion and protection of human rights, and the promotion of social justice
- Industrial relations practice is developed through tripartite cooperation and requires constant improvement and adjustment, it generally adheres to and is consistent with internationally recognized principles, obligations and standards including the fundamental principles and rights at work and the need to maintain the link between social progress and economic growth.”

These Guidelines are provided:

- “for the guidance and benefit of all ASEAN members in their continuing quest for harmonious and productive industrial relations based on social justice, as a cornerstone of quality workplaces and economic success, that should be respected and promoted by ASEAN member countries.”

ASEAN Guidelines on Good Industrial Relations Practice

These Guidelines are provided to give an overview of the issues deemed relevant by the ASEAN countries and an insight into their thinking with regard to industrial relations and workplace matters.

The Guidelines give nine headings/topics which managers/supervisors should consider and adhere to as SOP in regard to their individual workplace relations.

The headings/topics are:

1. Legal framework

This identifies the need for a sound legal framework to underpin and provide the basis for IR practice.

The framework “...needs to take into account national economic and social conditions and in particular guarantee and protect the basic rights and requirements of employers to manage their business and to grow and that of the workers to just working conditions, stable employment, minimum standards, a safe and healthy working environment and to express their views as well as participate in decision-making that have significant implications for themselves or their workplace.”

It is a requirement labour laws are “... clear, reasonable, practical and effectively and evenly implemented.”



2. Fundamental rights of employers and workers

This gives employers and employees the right to organise and represent themselves.

Inherent in this are rights in relation to Freedom of association and Collective bargaining subject to Member State conventions.

“This basic human right goes together with freedom of expression and is the basis of democratic representation and governance. Collective bargaining is a process through which employers and trade unions discuss and negotiate their relations particularly the terms and conditions of work with a view of reaching mutually acceptable collective agreements. In their absence of union representation, workers and employers should consult one another to manage labour disputes according to the terms and conditions set out by the laws and/or regulations of individual countries. This should include an adequate grievance handling mechanism to facilitate the amicable resolution of disputes.”

3. Bipartite cooperation and collaboration

This highlights the need for good relations between employers and employees with reference to issues such as “...Harmonious, productive and stable industrial relations.”

“At the shop-floor level, various subjects of common interests to labour and management are discussed in bipartite mechanisms including productivity improvement, gain-sharing, recruitment and dismissal, safety and health and grievance handling. The strengthening and development of effective bipartite collaboration and cooperation including the negotiation skills of workers and employers are important requirements of good industrial relations.”

4. Building mutual trust and respect

This avoids the negative sentiment which can occur in workplace relations.

“Mutual trust and respect are essential and must be fostered to pave the way for frank and productive discussion and exchange of views and genuine consensus between labour and management on the strategic direction and response to common challenges and issues.”



5. Mutuality of purpose and benefits

There needs to be shared purposes, goals, objectives and vision with the intention of developing win-win outcomes.

“The needs and expectations of all stakeholders should be taken into account and the resulting benefits be clearly seen and understood by employers and workers. Government, employers and workers have an important role to play and responsibility to discharge to bring about sustainable economic and social progress. They need to commit to work together, as a shared responsibility, to reach consensus on various workplace, economic and social issues including competitiveness, productivity and employment stability.”

6. Dignity at work and highlighting best practices

This emphasises the role of labour as a service provided by human beings/people and highlights it is not a ‘commodity’.

“Work ought to be a source of dignity and fulfilment and not of exploitation and frustration. Successful and best practices or procedures employed by workers and employers can be identified, catalogued, reported and widely disseminated for the purpose of replication. This includes the publication of case studies that provide in-depth analysis of important joint action of labour and management on various aspects of the employment relationship.”

7. Good faith behaviour

This Guideline stresses the importance of honesty, integrity and openness in all IR matters.

“Every effort must be made to reach an agreement through genuine and constructive negotiations. Unjustified delays in negotiations should be avoided and agreed terms of employment must be performed by every worker and employer in good faith. Industrial relations particularly negotiations must be conducted professionally and competently and the parties should work together to resolve issues fairly and expeditiously.”

8. Effective labour dispute settlement

This speaks to the requirements for dispute resolution and the need for fair and effective protocols to be developed and used.

“It shall be ensured that during a labour dispute settlement process, the employers have to fulfil the workers’ rights properly. Such processes and machineries also cover the minimization and prevention of conflicts such as by providing relationship development, training programs in problem-solving techniques to resolve problems on an ongoing basis, and assisting parties to navigate the process of change and jointly agree on a strategy to create or take advantage of new opportunities.”

9. Tripartite partnership and social dialogue

This underscores the need for government, employers and workers to combine/unite to optimise work, social and economic outcomes.

“A more structured framework can provide the necessary platform to tackle problems and work together more effectively to overcome even the most complex challenges and issues. Fair terms of employment, decent working conditions and economic and social development are best achieved with the broad-based efforts, collaboration and consent of workers, employers and government. It is therefore imperative to strengthen tripartism and social dialogue and the role of governments, employers’ and workers organizations specially their capacity to engage in and promote labour management cooperation and tripartite partnership.”



Explaining background information to Conditions of Employment

‘Conditions of employment’ are the terms and conditions under which a person is employed.

They:

- Represent the agreed *minimum* arrangements under which the employment relationship takes place
- Must be adhered to by employers and employees
- Form the basis of the employment contract for an individual.

Conditions of employment may be:

- Prescribed by legislation
- Contained in a standard contract
- Negotiated with an employer.



Content and examples of Conditions of Employment

Contents of 'Conditions of employment' can relate to a very wide range of topics.

The topics and generic statements below are indicative/representative of what exists.

Probationary period

This:

- Relates to a period when the employee starts working for the organisation
- Is a trial period
- Gives the employer time to determine if the new employee is suitable for the position
- Usually last for three months
- Allows the employer to dismiss/terminate the employment of the staff member for non-performance within the stated probationary without any further obligations
- Gives the employee an opportunity to leave the employer.

Some enterprises do not have probationary periods, and some have periods longer than three months.

Wages

This section will address:

- Work classification – such as differentiations between:
 - Casual employees – who are paid on an hourly basis, per engagement: they receive a relatively high hourly rate but no entitlements
 - Part-time employees – who work above the minimum number of hours per week but less than the hours worked by a permanent employee: they receive *pro rata* entitlements
 - Part-time employees may, for example, work no less than 20 hours per week working a minimum of five days a week, four hours a day.
 - Full-time employees – also known as permanent employees. They work the full number of hours per week (40 hours – 48 hours/week spread over five or six days) as determined by/stated in the applicable industrial/employment instrument
- Standard rates of pay – for the above classifications
- Penalties rates – which may be applicable for:
 - Weekend work
 - Late night work
 - Early morning work/starts
 - Working on Public Holidays
 - Overtime – working outside/beyond rostered hours or designated 'spread of hours'



- Allowances – which may be paid (for example):
 - If the person holds extra/nominated qualifications/certificates
 - Uses their own tools of the trade
 - For clothes/uniform purchase, cleaning and maintenance/repair
 - For being 'on call' when off duty
- How wages will be paid – such as:
 - In cash
 - By cheque
 - By direct deposit into an account
- When wages will be paid – which may be (for example):
 - Weekly
 - Fortnightly
 - Monthly
- Deductions from wages – in terms of (for example):
 - Taxation
 - Legislated other deductions
 - Payment for board and lodging
 - Payment for meals.



Health and safety

This important section may address need for employee to:

- Conform with local OHS *legislated* requirements
- Comply with designated *internal* OHS protocols
- Hold and provide evidence of a nominated OHS qualification/certification.

Conditions under which the work takes place

This specifies detail in relation to items such as:

- When staff are entitled to rest breaks
- When employees can take meal breaks
- Length of designated breaks
- Length of the working day – and maximum hours worked per week
- Entitlements to the various types of leave provided for under the relevant employment instrument/agreement which has been signed – this may identify and describe:
 - Conditions under which leave may be taken and/or payment for such leave will be made
 - Number of hours provided for each type of leave
 - When the employee becomes entitled to each classification of leave

- Evidence required by the employer to authenticate the leave being applied for
- Need for application for certain types of leave to be made in advance to give the employer the chance to arrange for replacement staff.

Types of leave which may be provided for can include:

- Sick leave
- Annual leave
- Long service leave
- Maternity/paternity leave
- Jury duty
- Carer's leave
- *Force majeure* leave – to respond to a family crisis
- Compassionate leave
- Study leave.

Dress standards

Employers have a right to set requirements regarding dress standards.

This is often a contentious aspect of employment agreements.

Requirements in this regard need to be 'reasonable' and appropriate to the job being done and the industry where the work occurs.

Mention is usually made of issues to do with:

- Wearing of designated uniforms
- Make-up
- Personal presentation
- Sensitivity to and/or accommodation of cultural requirements in this regard.

See the following for further discussion:

<http://www.eoc.sa.gov.au/eo-you/workers/work/dress-codes-workplace> – Dress codes in the workplace.



Flexible working arrangements

Not all employers/agreements include this topic.

It can relate to (for example):

- Requirement or choice to take overtime worked as TOIL instead of payment
- Opportunity to work flexi-time
- Potential for tele-commuting.

Access to training/PD

This will/may address:

- Mandatory training required for the employee by the organisation – which may be delivered internally or externally

- Training/courses offered by the employer
- Payment/s available to assist/reimburse staff for training-related expenses
- Need for nominated qualifications/certificates to be obtained by a given date
- Eligibility criteria.

Termination

This will cover:

- Definition/description of circumstances under which employees may have their employment terminated by the employer
- Specification of payments to be made when a staff member is terminated
- Description of how termination payments are to be calculated and paid
- Penalties to be applied to the employee if they leave without giving required notice to their employer
- References and/or Statements of Employment which will be provided (or not) by the employer.

Superannuation

This may/will detail:

- Amount/percentage of earnings paid – according to legislated requirements or other negotiated arrangements
- Frequency of payment of contributions
- Name of fund into which the payments are to be made.



Need for confidentiality

This will specify the employee is not to:

- Reveal 'trade secrets' to anyone
- Disclose business information to anyone else
- Disclose customer information/details to members of the public
- Use internal organisational information for personal gain.

Restrictions

There can be a list of restrictions limiting what the employee may/may not do.

For example these may relate to:

- Prohibiting the use of company resources for private use
- Banning the taking/making of person telephone calls during working hours
- Requiring employees to leave the business when they have completed their rostered working hours/shift
- Forbidding staff to engage in 'other employment' while employed by the employer.

Websites

Visit the following for more information:



http://www.google.com.au/url?sa=t&rct=j&q=&esrc=s&source=web&cd=2&ved=0CCUQFjAB&url=http%3A%2F%2Fapirnet.ilo.org%2Fresources%2Fasean-guidelines-on-good-industrial-relations-practices%2Fat_download%2Ffile1&ei=PRGVVJS-JYad8gX6w4GABg&usq=AFQjCNEuAH0VIBcwqvpiKC2JuR7T8VoeAg&bvm=bv.82001339.d.dGc – ASEAN Guidelines on Good Industrial Relations Practices

<http://www.keysian.com/operational-management/2012/1/2/sample-standard-terms-and-conditions-of-employment.html> – Sample standard terms and conditions of employment

<http://www.austrade.gov.au/Invest/Doing-business-in-Australia/Investor-Guide/Running-a-business/Employing-people-in-Australia/Australian-employment-conditions> – Australian employment conditions

<http://www.humanrightscommission.vic.gov.au/index.php/workers-rights/workplace-terms-a-conditions> – Workplace terms and conditions for employees

<http://www.dfat.gov.au/dept/DFAT-Enterprise-Agreement-2011-14.pdf> – Department of Foreign Affairs and Trade: Enterprise agreement

Letters of Offer

The contents of the 'Conditions of Employment' and/or the work contract are often contained within a formal 'Letter of Offer' sent by the organisation to the person who has been selected for a job.

They are required to sign the contract within a given time – usually seven days – and return it to the employer as evidence:

- They have accepted the position
- They have read the contract of employment
- They agree to be bound and abide by the terms contained in the agreement.

Online information

See:

<http://www.plus40.com.au/site/uploaded/EmpContract.pdf> - Sample employment contract

https://advertiser.seek.com.au/Advertisers/resources/eg_letter_offer.ascx - Example letter of offer and employment contract

Employee files

Organisations commonly establish an 'Employee File' for every employee in their workforce.

This is usually a paper-based file which may contain/record:

- Copy of the Job Statement (see below) for the role performed by the staff member
- Copy of the job vacancy advertisement placed for the job

- Copy of application for the position – in terms of:
 - Their Covering Letter
 - Their CV
 - References provided
 - Copies of qualifications
- Details of the interview conducted with the individual – with reference to (for example):
 - Interviewer notes taken at the time
 - Scores achieved by the applicant in relation to the KSC for the job as determined by those who conducted the interview
- Signed copy of the Letter of Offer/Employment Contract
- Ongoing performance management details
- Details of any internal training or PD undertaken
- Details of further external qualifications obtained after initial employment
- Details of any disciplinary action taken in relation to the staff member – such as:
 - Counselling sessions
 - Verbal warnings
 - Written warnings
- Details of extra responsibilities given to the person
- Details of promotions earned.



Job Statement

Some organisations prepare a Job Statement for every position within the business.

The Job Statement is a document combining:

- The Job Description
- The Job Specification.

Please note:

- The Job Description may be referred to as the 'Position Description' (or PD)
- The Job Specification is also known as the Person Specification
- Not all enterprises have a Job Statement even though they may have both a Job Description and Job Specification
- Job Description and Job Statements may exist for some positions but not others
- These documents need to be updated regularly in order for them to remain relevant and useful for the purposes of recruiting and selection staff.



Job Descriptions

A job description may contain:

- Title of the job to ensure everyone knows the exact job/position to which the description applies
- Location of the job – this is a description of the department where the job is located. In some businesses this may also include the actual address of the job (where the establishment has multiple sites/outlets). There may be an added indication as to whether the position is front-of-house or back-of-house
- Job responsibilities – this lists responsibilities which attach to the job within the context of the workplace, but which may not apply to a similar job at another workplace.

Examples may include:

- Occupational health and safety responsibilities
- Supervision of others
- Performing banking duties
- Being responsible for ordering stock
- Balancing registers at the end of trade

- Day to day tasks/duties of the job – this is what the uninformed person might think comprises all there is to know about the job. It is a description of all work this position needs to do.

Examples (depending on the position) may include:

- Customer service
- Selling
- Cash register operation
- Stocktaking



- Job title of the person the position reports to. This indicates who the position will be responsible to. It may be the site/business manager, a department, or some other position as appropriate. This person should have had significant input into job analysis and subsequent construction of the Job Specification and Job Description
- Number of people supervised – if the position is responsible to oversee the work of others, this section indicates the supervisory extent of the position
- Working conditions – in some job descriptions it has been found to be beneficial to note the working conditions the successful applicant is expected to work under. It is very important to be honest in this description to avoid hiding negative aspects of the job from potential job applicants. Things such as the fact the work is performed in an office, in a very busy location, requires people to be on their feet all day and/or to work in a noisy environment, may be listed
- Workplace hazards – this identifies any potentially dangerous equipment, working conditions, working environment, or work practices relating to the job
- Special work procedures to be followed – this relates to the individual enterprise setting out unique work practices the organisation has deemed necessary but which other workplaces may not have. This may address work practices and protocols developed by the business designed to accommodate:
 - Individual workplace layout
 - Product standards and/or service levels

- Certain equipment, systems or technology used
- Integration of one job or procedure with another in the workplace
- Equipment used – this varies and can involve specifying a certain make/model of equipment with which the new worker will need to be familiar in order to avoid the need for training them in its use
- Output standards required – this will not apply to all jobs, but where it does matter it specifies requirements in terms of quality and quantity standards relating to their workplace performance. This also informs potential staff members of what will be expected of them and lets them know in advance how their performance will be assessed
- Type of work measurement methods used – this may not be so much a concern of small businesses but critical where pay rises are linked to productivity. This needs to be included so it is clear exactly how productivity will be judged when it comes time to assess worker issues such as individual contribution to overall performance and determine associated matters such as pay rises, promotions, extra hours, further responsibilities and training.

In other words the job description contains all the information a person needs to know about the job itself.

Job Specifications



The job analysis will have helped to describe the type of person best suited to the job under consideration.

This addresses the **human qualities** the best person for the job would possess. This explains why some businesses refer to these as 'Person Specifications'.

The following are examples of what might be contained in a job specification:

- Title of the job – to ensure everyone can identify the job being talked about
- Minimum level of education – what level of secondary, or tertiary schooling is required, if there is such a requirement? What level of literacy and/or numeracy does the position demand?
- Any specialised education/training – is there a need for a special Certificate, or certain trade qualifications?
- Work experience – is actual, practical work experience necessary? If so, where should this experience have been gained and how much of it should there be? Should the person have had a set amount of experience in a certain business, department, trade or establishment type? Must they be familiar with certain things, certain pieces of equipment, or particular brands of machines?
- Personal attributes – is it important they have, for example, attention to detail? Must they be 'self-starters'? Must they be able to work unsupervised? Be reliable? Be prepared to work shift work?
- Physical effort required – what degree of fitness or strength is needed? Is there heavy lifting? Will they have to spend much time on their feet?
- Interpersonal skills. The industry relies heavily on individuals who are 'people persons': does this job call for a significant amount of this ability?

In other words the job specification contains all the information about the **qualities required** of the person who will do this job.

Industrial matters

'Industrial matters' is a generic term.

Exact definitions and interpretations can be expected between countries.

It is important to consult local legislation to determine exactly what applies in individual countries.

One orientation to 'industrial matters' states it:

"...means matters or things affecting or relating to work done or to be done in any industry, or the privileges, rights, duties or obligations of employers or employees in any industry".

(Source: http://www.austlii.edu.au/au/legis/nsw/consol_act/ira1996242/s6.html, NSW Consolidated Acts, Industrial Relations Act: Definition of industrial matters)

The New South Wales Consolidated Acts, Industrial Relations Act: Definition of industrial matters goes on to state:

"Examples of industrial matters are as follows:

- (a) the employment of persons in any industry (including the employment of minors, trainees, apprentices and other classes of employees),
- (b) the remuneration (including rates of pay, rates for piece-work and allowances) for employees in any industry,
- (c) the conditions of employment in any industry (including hours of employment, qualifications of employees, manner of work and quantity of work to be done),
- (d) part-time or casual employment (including part-time work agreements),
- (e) the termination of employment of (or the refusal to employ) any person or class of persons in any industry,
- (f) discrimination in employment in any industry (including in remuneration or other conditions of employment) on a ground to which the Anti-Discrimination [legislation] applies,
- (g) procedures for the resolution of industrial disputes,
- (h) the established customs in any industry,
- (i) the authorised remittance by employers of membership fees of industrial organisations of employees,
- (j) the surveillance of employees in the workplace,
- (k) the mode, terms and conditions under which work is given out, whether directly or indirectly, to be performed by outworkers in the clothing trades."



Sources of information

Managers and supervisors can source details of what is required in relation to employment and industrial relations matters by:

- Speaking to the HR department in the workplace – who should have:
 - Copies of relevant legislation
 - Copies of employment contracts/employment instruments
 - Sample employment files
 - Sample Letters of Offer
 - Copies of Job Description and Job Specifications
 - Sample job vacancy advertisements and KSC
- Reading and becoming familiar with all documents (see dot point immediately above) – in order to:
 - Understand requirements and clarify issues and ambiguities
 - Be able to communicate requirements to others/staff
 - Ensure staff management and handling of workplace relations complies with all promised and mandated requirements
- Talking to senior and more experience managers and supervisors – to:
 - Learn from their experience
 - Obtain their perspective on how required obligations translate into reality in the workplace
 - Determine what they do to identify IR requirements
 - Gain tips and advice in relation to passing on IR information to employees
- Speaking to key industry stakeholders (government agencies [employment and IR], unions, peak industry bodies, employer groups) to:
 - Obtain copies of relevant requirements
 - Identify sources they recommend for determining *current* requirements and ascertaining changes as/when they occur in the future.



1.2 Identify workplace changes or issues which may cause industrial unrest promptly and take appropriate action

Introduction

The reality of all workplaces is they are dynamic locations subject to constant issues which have the potential to generate industrial unrest among employees.

This section defines 'industrial unrest', introduces the concept of 'industrial action', suggests how the emergence/presence of industrial unrest may be identified, and describes action that might be taken to respond to industrial unrest issues which have been identified.

Industrial unrest

'Industrial unrest' defined

'Industrial unrest' is a generic term.

It is also known as:

- Labour unrest
- Industrial conflict.

Industrial unrest may be seen as:

- Situations where employees are dissatisfied with what is happening in the workplace as a result of some conflict or tension between management and the workers
- Instances where there is a dispute between employees and management
- The result of a situation where staff are unhappy with existing or proposed working conditions in their workplace
- Action taken by employees (see below 'Action taken by employees') in response to their dissatisfaction with what is happening in the workplace
- Impacting just one individual worker – or a *group* of employees, or the *entire workforce*
- Usually caused by issues relating to remuneration or working conditions.



Industrial action

When industrial unrest exists within a business staff usually engage in some form of 'industrial action'.

Industrial action may include:

- Strikes – where staff refuse to work at all.

Strikes may be:

- Short-term – such as two hours, half-a-day or a full day
- Longer term – including multiple days/weeks and rolling strikes (where strikes occur on random days/at random times on an ongoing basis)

- 'Go slows' – where staff work slower than they normally do resulting in potentially:
 - Less work being accomplished
 - Increased waiting times for customers
 - More staff needing to be employed to achieve the same amount of work
- 'Work to rule' action – where staff:
 - Only perform duties specified in their individual Job Descriptions/PDs
 - Refuse to do any work over and above what is prescribed for their position
- Lack of communication – in terms of:
 - Staff not passing on necessary information to management
 - Workers deliberately not sharing vital information with each other
 - Employees not giving customers information over-and-above what they actually ask for
 - Refusal of employees to attend regular/scheduled staff meetings and/or briefings
- Passive non-compliance – such as:
 - Complying with strict interpretations of organisational requirements and SOPs – meaning employees do not use common sense to determine what *should* be done or what *extra* actions need to be taken
 - Failing to notify management of issues staff can foresee – so appropriate action can be taken by the organisation to avoid or minimise the impact of the threat/problem
 - General lack of cooperation – such as:
 - Not helping when they usually would
 - Not providing input to a workplace initiative
 - Not providing feedback on workplace activities
- Intentional sabotage – where certain employees engage in deliberate acts such as:
 - Damaging property or physical resources
 - Deleting electronic data
 - Stealing – money and/or product/s
 - Producing unsaleable products which cannot be used/sold and have to be discarded
 - Engaging in acts to cause expense to the company – such as leaving lights on, leaving taps running, using 'too much' product, giving away items to customers
- Active non-compliance – where all/most staff:
 - Refuse to comply with a range of standard workplace protocols
 - Ban work on certain aspects of the business undertaken by the organisation
- Picketing of the organisation – where staff might:
 - Hold protests outside the business
 - Hold up posters highlighting their complaints and/or demands.



Possible causes

Generic reasons

It is said all the reasons for industrial unrest fit into one of five generic categories:

- Social reasons/causes – such as:
 - A lack of pride in the work being done and in the company that employees work for
 - Refusal of a worker to continue working for an organisation with questionable ethical standards
 - Lack of job satisfaction and absence of a challenging and stimulating working environment
- Economic reasons/causes – such as:
 - Poor rates of pay
 - Insufficient fringe benefits/perks of the job
 - No potential for promotion/increased earning capacity
- Political reasons/causes – such as:
 - Influence exerted by unions on its members to take industrial action
 - Government initiatives which attack worker conditions, increase taxation or add a new mandatory deduction from wages
- Organisational reasons/causes – such as:
 - Lack of money in the organisation to provide sufficient, appropriate, safe and/or up-to-date equipment and facilities
 - Poor layout of the workplace and equipment in it
 - Bad/unsatisfactory or unappealing policies and/or operational procedures
- Psychological reasons/causes – such as:
 - No recognition of effort, performance or the personal contribution made to what the organisation produces/achieves
 - An organisational culture which is at odds with the values of the individual employee
 - Lack of job security and the ever-present fear of job loss or a reduction in hours.



Specific causes

Specifically, industrial unrest may be caused by:

- Changed working conditions – such as (for example):
 - New systems or equipment being introduced to the workplace which employees do not understand or they fear will adversely impact their job in some way (perhaps in terms of reduced hours, or the need to learn something new)
 - Revisions to normal protocols – in terms of company policies and SOPs which employees believe cause unacceptable disruption to them or otherwise negatively impact their working life or family/social life

- Safety issues – where employees believe they are put at risk by new systems, technology, equipment or protocols
- Revisions to anything which staff have been entitled to previously but which is now being reduced or removed – such as (for example):
 - Removing car parking spaces for staff
 - Reducing tea and coffee provided for employees
 - Altering of leave entitlements and other remuneration-related topics by management which results in some detriment to employees
- Wage demands – where staff:
 - Want more money for the work they do – due to cost of living expenses, or as a result of inflationary pressures
 - Want more money because they are being asked to do more/different work
 - Want to negotiate better remuneration as their existing work contracts or agreements near their expiration date
 - Believe they deserve more money because they are more experienced, better qualified or more valuable to their employer
 - Identify employees in another (similar) business are receiving more money than they are receiving
- Political reasons – where organised/unionised labour workforces elect to take industrial action in order to:
 - Reinforce a political point they wish to make
 - Cause embarrassment to the government
 - Disrupt the operation and reputation of a business or country
 - Respond to a political decision taken by the government
- Management who lock employees out of a workplace – as a result of:
 - Industrial action actually taken by staff
 - Threats made by staff in relation to proposed industrial action
- Action taken by management which is deemed unacceptable and/or unfair by employees – such as:
 - Their unfair dismissal of a staff member
 - Threatening employees with disciplinary action or dismissal
 - Anticipated/proposed staff lay-offs.



Online information

Take time to visit:



<http://elearning.nokomis.in/uploaddocuments/Industrial%20Relations.%20&%20Labour%20aws/Chp%207%20Industrial%20Unrest%20Causes%20and%20Cures/PPT/Chapter%2007.pdf> – Industrial unrest: causes and cures

https://docs.google.com/presentation/d/1PNkPP9JhteVbTgz8ClfhqNtzA_FgTCIsPEontMB9LbE/edit?pli=1#slide=id.p17 – Meaning of industrial conflict and industrial unrest

<http://smallbusiness.chron.com/causes-conflict-industrial-relations-59203.html> - What are the causes of conflict in industrial relations?

<http://www.whatishumanresource.com/causes--Effects-of-poor-industrial-relations> - Causes and effects of poor industrial relations

<http://www.yourarticlelibrary.com/employee-management/5-causes-of-poor-employer-employee-relations/27997/> - 5 causes of poor employer-employee relations

Identification of the emergence of industrial unrest

Managers and supervisors can or will become aware of industrial unrest through a range of possible ways:

- Convening staff meetings – and listening to what employees say and what their issues, problems, complaints and concerns are
- Attending staff meetings (as distinct to *convening* them) – and again listening to what is being talked about as issues and concerns
- Being directly informed verbally or through written communication (such as a 'Log of claims') – by:
 - An individual staff member
 - A group of employees
 - The union representative for the workplace or a discreet group of workers within the organisation
 - A representative from union Head Office working on behalf of their members
- Being informed by a third party there is a problem – which can occur:
 - When a concerned and well-meaning colleague shares their concerns about an issue impacting one/several of their co-workers
 - As a result of feedback from a customer – or in the form of a complaint

- Personal observation of activities and communication in the workplace – this is often referred to as ‘management by walking around’ and involves:
 - Talking to staff as they work and:
 - Listening to what they have to say
 - Interpreting their body language

- Watching staff performance of tasks – to:
 - Ascertain the level of enthusiasm
 - Determine compliance with what is required
 - Examining/checking workplace conditions and facilities – in order to:
 - Check safety and suitability issues
 - Determine whether or not expected/promised working conditions are actually being provided
- 
- Realising normal activities of the workplace have been interrupted in some way – as a direct result of action taken by employees, such as:
 - Bans on working overtime
 - Work-to-rule
 - Go-slows
 - Non-compliance
 - Lack of usual cooperation.

Websites

See more at:

http://www.airc.gov.au/familyprovisions/acci/Att%20E_Vic_Retail_Log_of_Claims.pdf – Log of Claims

<http://rphrm.curtin.edu.au/2000/issue1/asean.html> - Stateness and changing contours of industrial relations in ASEAN

http://www.ilo.org/wcmsp5/groups/public/---asia/---ro-bangkok/documents/publication/wcms_140728.pdf - Report of the second regional seminar on IR in ASEAN

Responding to industrial unrest

Background

The exact nature of the action required to address identified industrial unrest will, of course, vary and depend on the cause of the problem.

With this in mind essential keys are to:

- Respond promptly to all identified issues – and not allow matters to drag on or continue unresolved
- Involve the workers – in addressing or resolving the situation
- Ensure the cause of the problem/issue is addressed – and time is not wasted targeting symptoms of the issue
- Negotiate an agreed solution that allows (where/if possible) a win-win outcome for employer and employees – rather than a solution which:
 - Costs jobs
 - Reduces staff working hours:
 - Imposes unacceptable cost burdens on the organisation – as a result of needing to spend more (or 'too much') on wages, resources or other demands.

Possible action

Possible action may include:



- Meeting with staff or their designated representative as part of an ongoing consultation process – to discuss the situation and generate a workable solution acceptable to all parties. This is the most proactive and effective way to resolve the majority of workplace industrial issues. The value and power of sitting down with those involved is not to be under-estimated in that it:
 - Demonstrates management interest in and engagement with the issue
 - Shows a desire to resolve/address the issue
 - Allows management to listen to what the workers have to say and receive first-hand input about the issue/s
 - Provides an opportunity for management to:
 - Present their side of the story
 - Describe what they see as the limitations which apply to the situation from their perspective
 - Indicate the pressures which are being applied to them by their stakeholders (owners, shareholders, Head Office)
- Investigating presented issues – which may require/involve:
 - Workplace inspections – often in company with employees or their representatives
 - Monitoring and collecting fact-based data about the matter under dispute or consideration
 - Gathering information from external sources relevant to the topic
- Writing reports regarding research undertaken, findings, and suggestions for action – and:
 - Presenting these to staff – for their consideration and/or approval for implementation
 - Making recommendations to colleagues and senior management
- Involving specialist assistance – which may relate to:
 - Obtaining input from technical experts – where the matter relates to technology, equipment, systems or other practical workplace operations
 - Asking for help from government agencies – who may be able to provide guidelines for action, legislated obligations and anecdotal experiences of other employers and industrial unrest situations
 - Requesting assistance from the relevant union – who may be able to suggest effective and workable options/solutions for common problems
 - Conciliation-mediation – where an external person/body tries to help *negotiate* a solution to the issue which is acceptable to both parties
 - Arbitration – where an external person/body listens to both parties (employers and employees) and then makes a decisions which the parties have agreed they will accept regardless of what it is

- Talking to staff involved – to:
 - Explain the stance and position of the organisation on the issue
 - Provide reasons/rationale for action taken and proposed
 - Advise and counsel them
 - Provide them with extra information to give them material from which to generate their own, balanced, objective and fact-based opinion
- Involving staff on an ongoing basis – in terms of (for example):
 - Including them when workplace decisions are made and asking for their contributions as part of the decision making process
 - Adding staff representatives to management teams and including them at management-level meetings
 - Capturing their input when workplace reviews, evaluations and initiatives are being planned and are taking place
- Acceding to demands/requests being made by employees and unions – where these are reasonable, legitimate or valid. In many cases, as a result of this response, there can be/is a need to:
 - Pass on costs incurred in doing this to customers via price rises for products/services provided
 - Re-structure the workforce – which may entail:
 - Job losses – to save money needed to pay increased wage costs of other staff
 - Hiring more staff – to address situations where staff were over-worked
 - Roster revisions – to, perhaps, reduce staff hours to off-set wage increases
 - Multi-skilling of employees – so the one person can do more than job
 - Combining two roles into one – to reduce the number of paid positions
 - Out-sourcing work previously done within the organisation – to save internal labour costs which have become too high/prohibitive
 - Ensure staff increase productivity (as agreed during negotiations) – to off-set the cost of increased labour costs
- Locking staff out of the workplace – and refusing to re-open the business until:
 - Staff stop their industrial action
 - Agree to the proposed resolution being offered by the employer. In practice, this action is a 'last resort' option and only to be considered when other possible solutions/attempts at a resolution have been tried and have failed



- Dismissing non-compliant staff – in accordance with:
 - Local laws – which commonly provide for employees to obey all legal instructions/directions given by their employer, or be subject to immediate dismissal
 - Relevant employment instruments/agreements – which have been signed by staff and usually contain a statement indicating the employer has the right to dismiss employees if they fail to perform as required/obey a lawful direction.

This option should be seen as *the* 'last resort' response to be used only where other efforts to resolve the issue have failed.

It must be remembered this approach will:

- Generate much negative sentiment towards the business
- Involve the organisation in extra expense – associated with staff recruitment, selection and training as well as time/cost/reduced productivity and service levels involved in getting new staff 'up to speed'.



Online links

Visit the following for more information:

<http://www.scmp.com/business/companies/article/1537317/how-cope-labour-unrest-turbulent-region> - How to cope with labour unrest in a turbulent region

http://www.aseanhrmech.org/downloads/singapore-Industrial_Relations_Act.pdf - Singapore Industrial Relations Act

<http://www.bollettinoadapt.it/old/files/document/18096AMANTE.pdf> - ASEAN Industrial Relations: Is a regional framework possible?

<https://archive.org/details/industrialunrest014882mbp> - Industrial unrest; a practical solution

<http://www.hrpulse.co.za/legal/industrial-relations/230610-how-can-we-stop-the-current-labour-unrest> - How can we stop the current labour unrest?

<http://www.modernghana.com/news/42643/1/consultation-arbitration-is-solution-to-labour-unr.html> - Consultation and arbitration is solution to labour unrest

<http://www.businessdailyafrica.com/Opinion-and-Analysis/Find-lasting-solution-to-rampant-labour-unrest/-/539548/1288976/-/gdm9lzl/-/index.html> - Finding lasting solution to rampant labour unrest

1.3 Identify potential causes of industrial unrest in external environments promptly and take appropriate action

Introduction

Not all factors likely to cause industrial unrest for an organisation will occur as a result of factors in the internal environment of the organisation.

This section gives a context for the impact of the external environment on industrial unrest, lists possible external causes of industrial unrest, explains ways to identify when these causes are impacting (or are likely to impact) on the business, and describes possible action that can be taken in response.

Context and causes

It is important to understand and appreciate:

- Factors from outside the organisation refer to causes which are external to the business – as distinct from those which are caused by factors within the business.

They are factors which occur/exist in the wider marketplace of staff employment, and in terms of national and international labour relations.

- External factors may be those which exist *at a range of locations* outside the organisation – such as:
 - The business next door or over-the-road
 - An enterprise on the other side of town
 - An organisation in the capital city
 - The same type of business operated by a different parent company
 - An agency in a neighbouring country
 - An operation in an overseas enterprise
- An organisation can be impacted in this regard by:
 - Changes in legislated requirements – as countries alter/amend their IR laws
 - New clauses contained in new/revised employment contracts developed by other employers – as they offer more attractive employment packages to recruit and secure required staff
- Decisions about increased benefits (in terms of higher wages and/or better working conditions) made at *other similar businesses* are likely to impact what is going on in all other like organisations – as employees and/or unions seek parity.



For example:

- A wage rise at another business will often form the basis of a claim/demand for more money in this organisation
- Introduction of better working conditions at another business/agency regularly become the focus of a claim for similar conditions to also be introduced elsewhere in other businesses

- The general economic state of the country and its neighbours and trading partners will influence and help create the total environment for industrial relations and workplace negotiations – in that:
 - A buoyant domestic economy will tend to create an atmosphere where workers want more
 - Poor economic conditions in feeder countries and/or the domestic economy tend to put claims for increased pay or better working conditions on hold
 - Steep inflation levels will fuel pushes for higher wages so staff can keep pace with cost-of-living increases
 - Employees appreciate stringent economic conditions will impact the ability of the organisation to pay for 'other' things such as labour-related demands
- Findings of research into events/occurrences at other workplaces may give rise to a range of demands for those findings to also be applied at other similar workplaces in order to (for example):
 - Enhance safety
 - Maintain parity
 - Improve service delivery
- Knowledge gained by staff who visit other businesses and other countries and learn about *their* labour-employment arrangements will sometimes be the catalyst for triggering demands for their employer to match those wages/conditions (or at least, increase or improve existing arrangements)
- There is a general link between:
 - Relevant and current qualifications held by staff and the wages they are offered and/or they want
 - The type and amount of experience a person has and the remuneration they are offered and/or they want
 - Supply and demand – for example:
 - A lack of suitably qualified and experienced staff will invariably mean they can demand higher wages and/or the organisation is prepared to offer/pay higher wages
 - An over-supply of staff will have create a downward pressure on wages
 - Wages and conditions which apply in other businesses and industries and the wages and conditions offered by the organisation – so there is no significant disparity between remuneration 'across the board'
- Payment of higher wages will not (generally) of themselves enable an employer to provide poor/low standard or unsafe working conditions – legislation always prescribes minimum working conditions which must be observed
- Provision of high levels of working conditions will not allow the employers to offer/pay lower wages to staff– legislation always prescribes minimum wages/pay rates which must be provided.



Strategies for identifying external causes of industrial unrest

There is no single strategy which will allow identification of all relevant factors and/or give a full appreciation of matters involved.

The best approach is to use a mix of the strategies listed below:

- Read and/or listen to and watch the local media – in order to:
 - Gain insight to local conditions
 - Learn about events and what is occurring locally
 - Gather general information about the immediate external marketplace
 - Learn from public statements/media releases made by unions and government agencies
- Join and participate in meetings and activities conducted by local bodies as appropriate to the nature/type of workplace – such as:
 - Relevant industry associations and industry peak bodies
 - Councils
 - Government agencies
- Attend industry conferences and seminars – which often have topics, sessions and keynote speakers on industrial relations and employment-related matters
- Obtain and read reports on IR and employment-related data – as researched and published by:
 - Government agencies and authorities
 - Industry bodies
 - Recruitment and staffing agencies
- Network with other people – using a targeted group of contacts who have been identified and selected based on their potential and ability to:
 - Provide advice based on previous industry experience
 - Give information formed through ongoing involvement with IR and employment-related matters
 - Advise on the best people to speak to regarding identified topics
- Enter into a mentoring arrangement with a notable and experienced business owner/manager who has worked in a relevant sector or business – in order to:
 - Learn from them and benefit from their experience
 - Use them as a sounding board for ideas, fears, concerns, proposed initiatives and intended courses of action
- Identify, 'bookmark' and visit and read selected websites – such as (for example):
 - Government agencies
 - Tourism bodies
 - Industry reports and statistics
 - Employer and employee representative bodies



- Subscribe to receive hard copy or online information – such as:
 - Newsletters from relevant bodies
 - Alerts from targeted bodies
 - Regular reports from important/influential organisations relevant to the business – some of these are available free-of-charge and some operate on a paid/fee-for-service basis
- Talk to relevant people within the business about their thoughts on external issues – these people may include:
 - The owner/manager
 - Other supervisors
 - Staff who are known to have regular contact and dealings with other businesses outside the organisation – for example, businesses such as:
 - Joint venture partners
 - Other agencies and sub-branches
 - Carriers and third party providers
 - Representatives from suppliers who call in on the business – and who also visit other businesses/workplaces – they are excellent sources of information about what is going on elsewhere in the industry
- Review and evaluate all 'Strategic Analyses' (also known as SWOT Analyses) conducted on the business – these provide a strategic analysis of:
 - The internal strengths and weaknesses of the business
 - The *external* opportunities and threats facing the organisation.



Taking action in response to identified external issues

There are three basic response options:

- Do nothing
- Plan and prepare for action
- Take immediate action.

Doing nothing

Taking no action in response to an external issue with the potential to cause industrial unrest can be a valid response provided it is a *considered response* to do nothing.

It can be viable action in situations such as where:

- The matter is considered to be relatively trivial or inconsequential – in terms of 'likelihood' (of the matter becoming a genuine issue) and the 'outcome' (when this does occur)
- The cost of addressing the matter far exceeds the benefits which would flow from doing so – that is, it is cheaper to do nothing
- There is no legal imperative/compulsion to act

- The current situation/workplace is acceptable and working well as it is
- The anticipated timing of any *local impact* of the issue is seen to be quite some time/years away.

Planning and preparing for action

Where an external issue is judged to impact in the short-to-mid term future on the business there can be a need to engage in some planning and preparation.

This may involve:

- Undertaking standard risk management protocols – of:
 - Risk identification
 - Risk analysis/evaluation
 - Risk management/controls
- Determining how the issue will impact the business – in terms of:
 - General industrial and employee relations
 - Specifics – with regard to remuneration, working conditions, other matters
 - Staff recruitment – in terms of the pool of potential and suitable employees available to the organisation
- Looking at how other organisations have responded – with attention paid to:
 - What they did
 - How they did it
 - The effectiveness/outcomes of their responses
- Working out when the issues will impact – so that:
 - Necessary protocols can be developed to support/underpin them – such as policies and SOPs
 - Time-tables for implementation and introduction of responses can be scheduled – including training provision and necessary transition phases
- Integrating new/revised protocols into existing other arrangements – in terms of (for example):
 - Revising Staff Handbooks and Induction and Orientation programs
 - Updating internal staff training
 - Aligning revised/new approaches with other workplace activities which have *not* changed
- Arranging resources for what is required – in terms of:
 - Human Resources – staff may need to be hired, fired or trained/re-trained
 - Physical resources – new/extra may have to be acquired
 - Financial resources – to pay for whatever is needed
- Reviewing and revising business-related plans – such as:
 - Various income and expenditure budgets with a special focus on the labour budget
 - Day-to-day operational plans for departments or business sections



- Short-term tactical plans for departments
- Longer-term strategic plans for the organisation
- Contingency plans.

Taking immediate action

Where the issue is deemed to be of special importance there is a need to take immediate action.

'Special importance' covers situations such as:

- Mandatory requirements imposed by legislation
- Strategic imperatives necessary to maintain business viability
- Issues which **MUST** be addressed in order to:
 - Maintain or improve the position of the business in the marketplace
 - Retain or attract necessary staff
 - Optimise the potential to attain stated goals, targets and objectives for the business.

Immediate action is essentially a condensed version of the activities involved in the 'Planning and Preparing for action' approach (above) – keys are:



- Involve and consult with staff – to advise them of events and gain their input into decision making/action plans
- Explain rationale for action – with reference to employees and the business
- Stress urgency of the situation – and the need to take immediate action
- Highlight potential of failing to act – loss of jobs and decreased job security
- Explain implementation and transitional arrangements – so staff can see the process has been planned and considered
- Indicate additional, different and/or revised arrangements are likely to be implemented – as time progresses and the situation distils/becomes clearer
- Stress the support provided for staff – so they have access to necessary advice, information and resources
- Focus on the benefits being provided to employees – as applicable in terms of wages and working conditions plus any of the issues related to the five generic categories identified in the previous section
- Indicate how short-term changes will flow on to become SOPs for the business – so staff can see the permanent nature of action taken
- Provide a feedback loop – so employees can give their comments on the change/s

- Note standard management practices for the issue – in terms of (for example):
 - Gradual/staged implementation
 - Monitoring procedures
 - Review and evaluation
 - Revision of protocols where needed – on the basis of feedback and evaluation
 - Benchmarking of practices
 - Reward and recognition for effort and compliant staff.



1.4 Apply conditions of employment in accordance with relevant legislation and industrial awards/agreements

Introduction

All applicable terms and conditions of employment must be applied to all employees throughout the workforce on an ongoing and consistent basis.

This section explains why this is such a vital process in relation to industrial relations, describes how applicable conditions of employment can be determined, discusses application of a sample range of conditions of employment and examines possible outcomes if these conditions are not applied according to requirements.

Importance of this step

It is extremely important to ensure this step is followed and adhered to for the following reasons:

- Staff usually know what to expect in terms of their pay and conditions – so they will:
 - Check their wages to make sure they are paid in accordance with what they have been told they are entitled to
 - Review their work environment to check the conditions they are actually working under reflect what they have been told to expect
 - Talk to other staff to see what they are receiving/getting paid
- Most staff work because they want to earn the money they have been told at interview they will receive – this means, in the majority of cases, the money in their pay packet is essentially the sole reason they work ... so their wages need to 100% reflect what they were told in order to justify their ongoing effort to turn up and work
- It is a legal requirement the stated, agreed or negotiated conditions of employment are complied with – they are not 'suggestions' or options: they are mandatory
- It is one way management can demonstrate *in a tangible form* they value their employees – by keeping their promises made to them when they were hired for the job
- In order to avoid the many negative outcomes which can result from failing to comply – see 'Possible outcomes of failing to apply these requirements' (below).



Determining relevant conditions of employment

Relevant conditions of employment will vary depending on:

- The individual workplace
- The type/s of employment instruments/agreements under which staff are engaged.

Standard ways of determining relevant conditions of employment may include:

- Reading the individual work contracts/conditions of employment
- Reading relevant Awards
- Speaking to administration staff in the HR department and/or the Payroll section
- Talking to the manager, owner and/or other supervisors
- Asking the union that has responsibility for the employees in the organisation
- Contacting the government agency with responsibility for Employment, Manpower or similar.



Application of sample conditions of employment

Generic information

Managers and supervisors are responsible for ensuring the agreed/compulsory conditions of employment are applied to all staff at all times.

Key generic actions to make sure all requirements are being adhered to include:

- Be 100% certain of all Awards and agreements which apply to all staff being employed – so there is full and comprehensive knowledge of the obligations which must be complied with
- Monitor documentation – such as:
 - Rosters
 - Time sheets
 - Staff pay advices
- Check and observe workplace practice – to:
 - Verify rostered hours are being adhered to
 - Make personal comparisons about the level of compliance *actually* being achieved with what is known *should* be occurring
 - Take immediate action to redress identified instances of non-compliance
 - Show staff that management is interested in honouring its employment-related promises
 - Encourage staff to raise incorrect/inappropriate working conditions/conditions of employment *on-the-spot* – as opposed to allowing an unsatisfactory situation to drag on.

Specific examples

Below is a list of four key checks which will be effective in optimising compliance in specific areas.

Checking necessary protocols are in place

This requirement involves:

- Making sure the necessary employment instruments have been drawn up – and are correctly worded to reflect agreements and legislated obligations
- Verifying appropriate notification procedures have been established and are being implemented – in terms of:
 - Notification of relevant details at Interview
 - Additional information at Induction and Orientation
 - Supplementary training – in-house via the training department or within individual operational departments
- Ensuring written documentation exists and is revised regularly – with regard to:
 - Applicable policies and procedures/SOPs
 - Grievance and dispute resolution procedures relating to:
 - Non-compliance by employer and employee with work instruments
 - Investigation into issues
 - Preventing recurrence of problems
 - Avoidance of foreseeable issues.



Checking correct payment of wages

This is done to make sure:

- Employees are receiving the correct wages to which they are entitled
- The organisation is not paying staff money to which they are not entitled.

Managers/supervisors could/should:

- Select one or two staff members who have just completed a rostered period of work – such as a week or a fortnight
- Use the roster to determine the hours they were required to work – taking into account any instances where there were hours which attracted penalty rates for things such as:
 - Early starts and/or late finishes
 - Weekend work or work performed on Public Holidays
- Compare these calculated hours against the timesheet the employee filled in and signed – to determine the accuracy of the hours claimed against the hours actually worked, and the hours rostered to work

- Use the pay rates contained in the Award/agreement under which they are employed to calculate their wages for that period – factoring in:
 - All legitimate allowances – for (for example):
 - Higher duties performed
 - Certification held
 - Use of own tools/equipment
 - All allowable penalties – see above, plus things such as:
 - Working beyond scheduled break times
 - Insufficient rest periods between shifts
- Compare this figure against the figure calculated by the HR department/Payroll section – to check the wages being paid actually match the wages which should be paid
- Take corrective immediately to address any identified problem – this may mean:
 - Advising staff – in matters such as:
 - Correct completion of time sheets
 - Adhering to and only claiming the hours they are rostered to work – and refraining from claiming hours which are not listed on the roster
 - Taking breaks when scheduled
 - Revising rostering strategies – to:
 - Comply with requirements
 - Be more cost effective
 - Notifying HR/payroll – about, as appropriate:
 - Need to change pay rates for certain staff to reflect what should be paid – where incorrect rates are being paid
 - Need to include (or remove) payment/s of penalties and/or allowances from staff – who deserve or not be entitled to them.



Checking working hours

This is done to make sure:

- Employees are working hours in accordance with the Award/work agreement under which they were employed
- The organisation does not incur additional/avoidable labour costs
- The person drawing up the staff roster is doing so in accordance with relevant Awards/work agreements.

Managers/supervisors could/should:

- Select several staff who have just completed a week or fortnight's work
- Look at the rosters for these employees – to determine:
 - When they started work
 - When breaks were taken
 - When they finished work

- Compare the identified times with the requirements of the applicable Awards/work agreements – to verify compliance with requirements, or identify problems in relation to:
 - When rest breaks were taken
 - When meal breaks were taken
 - Duration of these breaks
 - Hours worked within designated spread of hours
 - Break between shifts
- Take remedial action as required – which could require:
 - Adjusting payments to staff to reflect actual hours worked rather than rostered hours
 - Stressing to supervisors that staff must take breaks at rostered times
 - Re-training person who draws up the rosters
 - Revising rosters
 - Employing more staff.

Checking personnel records

This is done to:

- Ensure accurate and up-to-date records are being maintained
- Make sure staff are being allowed and/or paid for all leave and other entitlements they are eligible for
- Verify the business is not paying workers for leave and entitlements to which they are not entitled/eligible.



Managers/supervisors could/should:

- Select several staff who are working for the organisation
- Pick their personnel files/records from HR/Payroll department
- Analyse each file/record to:
 - Ensure adequate recording of their employment status – in terms of:
 - Start date
 - Current pay rate including applicable penalty rates (overtime and other rates)
 - Classification – Casual, P/T, F/T
 - Position
 - Training undertaken
 - Qualifications held
 - Check there is proper and accurate recording of leave – with regard to:
 - Date/s eligibility for all types of leave begins – most types of leave require staff to be employed for a given period before they become eligible for leave
 - Dates of leave taken and the type of leave taken – identifying the days/hours taken
 - Proof that required evidence had been supplied by staff to support/verify leave taken

- Leave remaining for each employee – by type of leave, for example detailing exactly how much sick leave is still available, how much annual leave is still outstanding and so on for each leave type
- Proof employees are completing required documentation to apply for leave and record leave they have taken
- Cross-check payment of leave and other entitlements – in terms of::
 - Correct number of hours are being paid
 - Correct rate of pay per hour is paid
 - Scheduled/promised pay rises are being processed as and when due – and not being ‘forgotten’ or otherwise withheld
 - Superannuation and other agreed entitlements are being paid at the agreed rate
 - Accurate deductions are being taken from the gross payment.



Possible outcomes of failing to apply these requirements

If an organisation fails to implement the promised/stated (legally imposed) conditions of employment for their workers, the list below outlines potential which can be expected:

- Dissatisfied staff – who:
 - Are not committed to the organisation
 - Will not perform to their best
 - Start looking for employment else where
- Distrust among staff – in relation to:
 - All levels of management
 - Future promises and statements made by managers
- Bad/negative media coverage/PR – when the story leaks to the media
- Intervention by unions – on behalf of their members to, as necessary:
 - Recover money owed
 - Force compliance with agreed arrangements. Dealing with these people is time consuming and an avoidable interruption to other work
- Penalties/fines applied by government agencies – which may be levied for (for example):
 - Failure to comply with legislation
 - Fraudulent activities. Attention from these authorities is best avoided as once they are involved they have a tendency to want to inspect and check **all** work records, not just the one where there has been a query
- Possible civil action – for Breach of Contract, where the contract is the ‘Contract of Employment’ between employer and employee.

1.5 Ensure induction and training initiatives are used effectively to develop a competent workforce

Introduction

Two-way communication between employers and employees underpins all successful and effective workplaces.

This section differentiates between 'consulting' and 'communication', highlights the importance of two-way communication in the workplace, presents options for consulting and describes activities inherent in facilitating two-way communication.

'Consulting' and 'communication'

The two words 'consulting' and 'communicating' (or 'consultation' and 'communication') are often used interchangeably.

In many cases this is acceptable but they are essentially different terms meaning quite different things.

Consultation refers to:

- Meeting with people – to discuss issues and show respect for their knowledge and ability to make valid contributions
- Bringing parties together – to listen to information and develop solutions to problems
- Asking people for their input – in order a working and acceptable/win-win outcome is generated
- Exchanging information – to use as the basis for resolving a situation or developing a course of action which is suitable/acceptable.

Communication refers to:

- Telling people what has been decided – based on the consultation which has taken place
- Informing people of implementation arrangements/policies and procedures – which have been established
- Giving verbal advice/information – to support and explain decisions and give surety about decisions which have been made
- Distributing hard and/or soft copy information – so there is easily accessible detail available for staff to refer to in order to assist them with implementation of decisions which have been made
- Sharing information – to use as the basis for *action* (as opposed to information for the purposes of *decision making*).



The importance of two-way communication

In terms of workplace relations means:

- Communication from management to workers
- Communication from workers to management.

Two-way communication represents current and accepted management theory in workplace relations where employees are encouraged to participate in the operation of a business and contribute their knowledge and expertise to assist management in their running of the business.



Two-way communication is distinctly different to traditional one-way communication where:

- Management tells staff what has been decided without any input from the workers and without any explanation for decisions made
- Workers have no opportunity to provide comment/feedback on the communication given to them by management.

Two-way communications:

- Is based on consultation – which underpins workplace cooperation and demonstrates respect for others and values their input
- Is more effective than one-way communication in most business contexts where the knowledge of staff is central to all operational decisions
- Is 'inclusive' in nature – meaning it includes and involves workers in decisions and actions taken.

Options for consulting

Background

Consulting to manage and maintain workplace relations involves:

- Having a **genuine** desire to consult – this is vital because:
 - Without this, nothing will occur
 - With it, all obstacles can be overcome
- Preparing a plan – to consult and communicate
- Using a range of strategies – as opposed to relying on just one, single approach
- Accommodating those from diverse backgrounds – so communication occurs in a language they can understand and engage with
- Providing necessary training to staff and/or their representatives – so they can develop appropriate/suitable/necessary skills
- Meetings between management and staff – or *representatives* from management and *representatives* of staff
- Recording what occurs and what is discussed – for future reference

- Identifying the issues which require mandatory consultation – which may include (for example):
 - OHS issues
 - Significant workplace change – especially for issues such as:
 - Instances where large numbers of terminations/redundancies are being considered
 - Applications have been made for flexible work arrangements
 - Disciplinary action against a staff member
 - Working conditions
 - Policies and procedures
 - Where employees raise an issue and request consultation – to help resolve the matter
 - Legislated topics where consultation is compulsory.

Practical strategies

Practical strategies for implementing useful workplace consultation are essentially simple – that is, they are not complex or technical,

They require:

- Time
- Commitment
- Some basic resources.

The following have proved to be effective options for management to use in relation to workplace consultation.

Holding regular meetings

These meetings:

- Occur between management and staff:
 - May be held between management and ‘all staff’
 - May take place between management reps and staff reps
- Can be of various forms/types and titles – such as:
 - All staff meetings
 - Team meetings
 - Department meetings
 - Toolbox meetings
 - Staff briefings
 - Special meetings
- Must be scheduled at regular times
- Should be held in the same location to encourage attendance
- Need to be held in a ‘neutral’ location – so they are seen as inclusive: they must not (for example) be held in the Manager’s office or the Board Room as this holds inequitable management influence on proceedings



- Need to be recorded/have minutes taken
- Should have their content/written record ('minutes') released to 'everyone' for their information so they know what took place.

Using various communication techniques

This can involve:

- Distributing hard copy materials – for staff to read so they have information relevant to the topic on which to make valid contributions and to help them understand the issue
- Using emails – to provide information as an alternative to hard copy distribution of material
- Lodging information on the intranet of the organisation – so employees can access and download or print it
- Including necessary information in regular internal staff newsletters – as another way of providing detail for staff to use as the basis for their thinking and contributions.

Implementing practical management techniques

These include:

- Having an open door policy – which allows/encourages staff to contact managers/supervisors 'at any time'
- Being seen in the workplace – so employees have an opportunity to approach and talk about issues
- Maintaining privacy and confidentiality – about who raised what issues, and about who said what if this is necessary
- Acknowledging the contributions of employees – where appropriate so credit is given where it is due
- Asking for input – when talking to individuals, groups, teams or departments
- Making sure current topics/issues are listed as agenda items – for all staff meetings so that there is optimum opportunity for employees to contribute
- Installing a Suggestion Box in the Staff Room – so staff have the option of making an anonymous contribution if this is what they prefer
- Thanking people for communicating – so they are encouraged/motivated to continue to do so
- Rewarding exceptional contributions – which result in some significant saving, progress, benefit or other positive outcome for the business.



Website

It is useful to visit the site of the Australian Government 'Fair Work Ombudsman'

(http://www.google.com.au/url?sa=t&rct=j&q=&esrc=s&source=web&cd=6&ved=0CDsQFjAF&url=http%3A%2F%2Fwww.fairwork.gov.au%2FArticleDocuments%2F711%2FConsultation-and-cooperation-in-the-workplace-best-practice-guide.pdf.aspx&ei=xpWqVKHBHsSvmAXpsoCQDg&usq=AFQjCNH-tNONfgQm_NqF1uQzUqrF_Kv6VQ&bvm=bv.82001339,d.dGY) to read their 'Best Practice Guide: Consultation and cooperation in the workplace'

Activities inherent in facilitating workplace communication

Effective two-way communication in the workplace can be facilitated by using some of the options suggested:

- Including time for staff to communicate – that is, making sure they have paid time (during working hours) to engage in the communication process. Workers should not be expected to use their own time for workplace relations communication because experience has shown this tends to significantly reduce their participation
- Providing *pro forma* documentation – such as forms and reports to help staff lodge or write communications
- Advising staff of channels of communication/s available within the organisation for them to use – and providing advice on how to use those channels
- Developing and producing written communication policies and procedures – to guide and (perhaps) prescribe requirements (or options/suggestions) for communication in the workplace with reference (for example) names of individuals who can assist, names of documentation that exists and details of meetings, locations, scheduling and so forth
- Using appropriate language – so communications can be understood.

This can mean:

- Providing the same information in multiple languages
- Using photographs and graphics
- Not using complex language
- Providing training for staff in relation to communication – which can require attention to a range of issues such as:
 - Language issues
 - Reading and writing skills
 - Numeracy skills
 - Verbal skills
 - Using computers/technology/emails
 - Techniques for presenting ideas and making points
- Making formal presentations to staff – for special topics/issues in which management uses (for example) PowerPoint slides, overheads, handouts, guest speakers and/or other instructional methods to disseminate important information. To make sure all staff can receive the information, there is often a need to conduct multiple presentations at different times/on different days. These presentations must always include a Q&A session.
- Posting messages on the Staff Noticeboard in the Staff Room – and including on these messages directions where staff can obtain more detail (such as on the intranet or by attending a meeting or via discussion with a designated person)
- Using social media – where applicable and where this option has been deemed to be viable and acceptable it can be tactical to use social media to provide some communication to staff. Again, reference is usually included to enable individuals to gain more information from a more 'traditional' source



- Identifying and using/tapping into the workplace 'grapevine' – so the casual/information talk within the organisation can be captured and so it can be used to disseminate information
- Establishing a workplace 'Communication Book' – this is a 'book' situated near timesheets/the time clock which staff are expected to read when they sign on/clock on for work. Management can use this to disseminate information and it also provides a tool for staff to reply/respond
- Establishing a system of staff representatives – so employees can use someone else to communicate their ideas, thoughts, concerns, criticisms and issues to management: this always results on more honest input and feedback as workers are not scared/concerned about making their contributions.

Websites

It is worthwhile visiting:



<http://www.fairwork.gov.au/about-us/policies-and-guides/best-practice-guides/consultation-and-cooperation-in-the-workplace#why-best-practice> – Consultation and cooperation in the workplace

<http://smallbiztrends.com/2013/11/ways-to-communicate-effectively-in-the-workplace.html> - 20 ways to communicate effectively with your team

<http://www.corrs.com.au/publications/corrs-in-brief/consultation-with-employees-why-what-and-when/> - Consultation with employees: why, what and when?

http://www.industrialrelations.nsw.gov.au/oirwww/Employment_info/Managing_employees/Workplace_policies_and_procedures.page - Workplace policies and procedures

<http://www.workcover.nsw.gov.au/newlegislation2012/Asafeworkplace/consultation/Pages/default.aspx> - Consultation

<http://www.decd.sa.gov.au/docs/documents/1/ConsultationRequirement-1.pdf> - Consultation requirements for managing workplace change policy

<http://www.workplace-communication.com/four-types-communication.html> - Four types of communication in the workplace to increase efficiency and productivity

<http://www.slideshare.net/skrip/7-workplace-communication> - Workplace communication

<http://www.practical-management-skills.com/effective-workplace-communication.html> - 12 steps to effective workplace communication

1.6 Ensure induction and training initiatives are used effectively to develop a competent workforce

Introduction

Induction and Orientation programs as well as staff training programs can provide the cornerstone for developing a competent workforce.

This section discusses the role of Induction and Orientation programs, examines workplace training and talks about workplace competency.



Induction and Orientation programs

Background

In relation to staff inductions (or 'Induction and Orientation programs):

- They should be mandatory for all new employees joining an organisation and/or being re-located/promoted to a new position
- They must be conducted early – commonly on the first day/days
- Some businesses have Inductions which run for several days – and some are conducted in an hour or so
- They must be planned and organised in advance – they will not simply happen of their own accord
- They provide the basis for developing all employees who join the organisation – as they:
 - Demonstrate the professionalism of the business from the start
 - Inform the new staff member about the company
 - Impart necessary/important knowledge
 - Prove the enterprise has formal and structured procedures for dealing with all workplace situations
- They should be conducted (or at least commenced) by someone the new employee has already met (for example, at the interview) – to give the new person a friendly/known face to relate to
- They are effective if divided into two separate sections:
 - General section – providing generic information (see below)
 - Department/role-specific (see below).

General section

This is the first part of many effective Inductions and is the information which is common to all new employees who join the business.

The same 'general section' is provided to all new staff regardless of who they are, where they will work or the role they will work in.

The general section will involve/comprise:

- Completion of necessary paperwork covering internal and legislative requirements, such as:
 - Offer of employment letter – if not already signed/completed
 - Staff uniform form
 - Personal details form including identification of 'next of kin'
 - Bank account details form for payment of wages into the bank
 - Personal taxation form
 - Superannuation application form
- Provision of 'Need to Know' information – which may relate to:
 - Names of key staff
 - Location of toilets and change room
 - Where staff can park their cars – and where they are **not** allowed to park), how to sign in at the beginning of work, where company policies and procedures are located
 - Personal presentation requirements
 - How to access the workplace intranet
 - Distribution and explanation of copies of organisational policies and procedures
 - Hand out of staff employee manual
 - Company rules relating to a range of issues such as:
 - Smoking
 - Using company resources/property for personal use/gain
- Tour of the workplace – including:
 - Meeting and being introduced to other workers
 - Meeting management personnel
 - Visiting all areas of the business
- Allocation of organisation-specific items – which may include:
 - Uniform
 - Name badges
 - Keys
 - Phone



- Basic safety requirements – as they apply to:
 - The business and its layout, operation, working procedures
 - Alarms – such as fire alarms: what they sound like and when and why they activate
 - Location of first aid kits, fire extinguishers, accident registers
 - Evacuation procedures and routes
 - Emergency Management plans which have been prepared for the business
- General information about the organisation – such as:
 - Physical size of the business
 - Locations of agencies and branches/sub-branches
 - Description of the products and services the organisation provides
 - Turnover of the business in monetary terms and/or number of tickets or tours sold in the past 12 months
 - Sections of the Strategic Plans and Business Plan for the organisation for the next 12 months – to give an idea of the direction the company wants to take
 - Name of owners and their industry (and other relevant) experience
 - Awards the business has won recently (say, in the past five years)
 - Names of industry bodies to which the organisation belongs
 - Names and copies of Codes of Practice/Conduct the business subscribes – and which staff must comply with
- Details of the culture of the organisation – which can cover:
 - Consideration and discussion of the Mission Statement of the business
 - Explanation of the Vision Statement
 - Explanation of company Values
 - Description of the work ethic of the business.



Department/role-specific

The second section of the Induction and Orientation program is 'individualised'.

This means while each one may be *similar*, they need to be created for each individual person according to the job/role they are going to do.

This second section of the Induction and Orientation program will usually comprise:

- Meeting the Department Head/Manager/Supervisor – if they have not already been met or they are not the one who conducted the 'General section' of the Induction and Orientation, to:
 - Obtain their contact details – cell telephone number, office location, internal extension/ telephone number

-

- Free items (food, drinks, accommodation, tickets, tours, trips, travel, merchandise) available for staff only
- Internal awards – for example 'Employee of the Week/Month', 'Salesperson of the Year'
- Cell phone
- Organisation and legislated benefits together with when they apply – such as benefits in relation to health care, superannuation, retirement benefits, long service leave, sick leave
- Explanation of internal staff appraisal system in use by the business – and details of:
 - How it operates
 - KPIs which will be relevant to the individual
 - Benefits flowing from it
 - Who conducts it
 - When it will be applied to the new employee
- Allocation of role-specific items – as required:
 - Work station
 - Locker
 - Personal equipment necessary for the allocated role.

Useful websites

Take the time to read:

<http://www.businessballs.com/inductiontrainingchecklist.htm> - Induction training and induction checklist



https://www.dlsweb.rmit.edu.au/toolbox/leadership/toolbox/op/op_c11.html - The induction process

http://www.steptwo.com.au/papers/cmb_induction/ - The importance of staff induction

Training

Pre-requisite information about workplace training

It is important to understand the following in relation to workplace training:

- Nearly every employer requires new staff to complete some form of initial mandatory training – as a way of showing them the basics of the job they have been employed to do

- Some employers allow time and/or monetary allowances for staff to participate in study/training – and some do not
- Some organisations believe it is best to hire trained staff (that is, employees with required qualifications and appropriate experience) – and other organisations believe it is best to engage people with no training and no experience and train them how they want to be trained
- Many workplaces create a training plan for each employee – to show how their training is laid out and what they will be expected to achieve
- It is useful to show employees the link between training/certification and promotion/career path(s) within the business – because this acts as a powerful motivator and incentive
- Training should be given the time and consideration it deserves – in terms of the need for it to be:
 - Planned and structured
 - Formalised and documented
 - Properly and suitably resourced
 - Recognised and valued by management
 - Available to all
 - Regularly reviewed and revised as needed to ensure it remains current and relevant to workplace need.



Why is training necessary?

Organisations provide training to staff for a variety of reasons including:

- To ensure employees are aware of basic requirements for the role they perform – in terms of issues such as work safety, service standards, job tasks, work method/s, equipment operation, implementation of SOPs and all other work-related pre-requisites and functional imperatives
- To create a competent and knowledgeable workforce – that can perform the required tasks and deliver the required service/s and knows *why* they are doing what they are doing
- To develop a multi-skilled pool of employees – who can be used in more than one role/position throughout the business, if required
- To satisfy the need for personal growth – by providing up-skilling and cross-skilling opportunities
- To ensure workers can work within the ever-changing business environment – by showing them how to use new technology, systems, equipment and information
- To comply with host country legislation – there can be a requirement for organisations to provide mandatory training (or certification) for those engaged in nominated work.

What options exist?

Several common options exist in relation to the provision of staff training.

An organisation may elect to use just one option or a combination of what is available (referred to as 'blended training').

The standard training options include:

- On-the-job training – this occurs where workers are shown what to do while they undertake the job they are being paid to do. This is often an informal and unstructured approach to training. It can be effective and inexpensive but there is no guarantee all necessary skill and/or information has been communicated, or that required standards/criteria have been met

On-the-job training may embrace:

- Being paired with a more experienced staff member (not a qualified Trainer) who shows them what to do
- Observational learning – where the new person watches and listens to a more experienced staff member and learned from what they observe
- Workplace coaching – see more in the unit 'Coach others in job skills'



- Off-the-job training – two interpretations/definitions exist for this option:
 - Training where the learner/new employee goes to a school/institute to complete formal course or to complete some required training
 - Training where the learner is removed from their workplace/work station and is trained within the organisation in a formal training environment/training room using a qualified Trainer and following a structured and formalized series of training and assessment sessions
- E-learning – where the learner uses a variety of electronic learning options and technology (internet, intranet, CBI, TEL, Moodle) to assist with their training. E-learning can be/is combined with on-the-job and off-the-job training options and provides increased flexibility with (often) higher levels of learner engagement with content/subject material. E-learning may also provide for partial or total assessment of learners.

Online information

Obtain further detail and related information visit:

http://cit.edu.au/partnerships/industry_connection/2011_december/making_workplaces_ready_for_workplace_learning - What makes workplaces ready for learning?

<http://www.insideindianabusiness.com/contributors.asp?id=923> – The importance of workplace training

<http://trainingtoday.blr.com/employee-training-resources/How-to-Choose-the-Most-Effective-Training-Techniques> - The most effective training techniques

<http://tribehr.com/blog/workplace-training-and-education-effective-methods-for-training-adults> - Workplace training and education: effective methods for training adults

<http://www.referenceforbusiness.com/management/Tr-Z/Training-Delivery-Methods.html> - Training delivery methods

Workplace competence

A competent workforce is one which can perform the tasks required to the standards required.

Most organisations (and these ASEAN training units) use the CBT approach to training meaning a competency standard (or 'benchmark' level) is set and deemed as being the necessary level/standard a person needs to achieve in order to proficiently perform a specific task.

This standard/competency level:

- Can be set by the organisation itself, the industry, or a government – as appropriate to the nature of the competency/work being performed
- May vary between different departments within the same organisation – to allow for differences in rates charged for similar services delivered/provided to customers
- May differ between different sites/outlets/offices of the same business – to accommodate the varying service peculiarities or requirements of different marketplaces/customers
- Involves three primary elements – of skill, knowledge and attitude
- Is not time-dependent – competency is not linked to a set number of hours spent in training: the key to success is the ability to demonstrate competency
- Allows workers to gain their competency through a variety of means/ways – including previous work experience and skills gained through life experience and any form of other (formal or informal) training they may have undertaken.

Once the learner demonstrates (using CBA) they can perform to this level on multiple occasions they are deemed to be 'competent'.

CBT/CBA does not use the terms 'Pass' or 'Fail', instead using 'Competent' and 'Not Yet Competent'.

Websites

Visit the sites below for more information on CBT:

<http://www.skillsrecognition.net.au/understanding-competency-based-training> - Understanding competency based training

<http://www.batchelor.edu.au/biite/wp-content/uploads/2012/06/CBT-Overview.pdf> - CBT: Introduction and definitions



1.7 Utilise consultation processes for the identification and resolution of grievances and the implementation of new work practices

Introduction

The importance and role of consultation has already been discussed in section 1.5.

This section examines consultation in the identification and resolution of grievances and presents options for consultation regarding the implementation of new work practices.

Consultation in the identification and resolution of grievances

Definition

In this context a grievance can be seen as:

- Any sort of work-based problem or issue
- A work-related complaint or conflict
- Something between staff and management/management and staff
- Something between staff/work colleagues.



Stakeholders

Depending on the issue, stakeholders who may be involved in identifying and resolving a workplace grievance could include:

- Staff
- Unions
- Employer groups
- Boards of management – or other management personnel or representatives
- Government.

Identifying grievances

Consultation can be used in the identification of workplace grievances in the following ways:

- Providing formal, written procedures – so there is a basis for action and a clear understanding of options available and the protocols to be followed
- Making sure all staff know there is a process for grievance *identification* – and not just a process for grievance *resolution*. Early/prompt identification often stops small problems becoming big ones, and always facilitates the resolution process.
- Being alert to the warning signs of troubles – through paying attention to:
 - Body language of employees
 - What is being said, how it is being said and what is *not* being said
 - General 'feeling' in the workplace

- Talking with staff while in the workplace – as part of ‘management by walking around’ (see <http://fortune.com/2012/08/23/management-by-walking-around-6-tips-to-make-it-work/>)
- Encouraging staff to communicate issues at the first opportunity – and not promoting a culture of ‘put up and shut up’
- Establishing designated *employees* as workplace contacts for staff to speak to if they have a grievance to discuss/report – because workers are more likely to talk with a fellow worker than a member of management
- Providing an opportunity for employees to raise grievances at any time staff are together with management – such as at staff briefings and de-briefings, staff meetings, OHS meetings, and any other work-based assembly
- Creating a ‘grievance committee’ which meets during paid working hours – with responsibility for:
 - Holding regular meetings to identify workplace issues
 - Formalising the grievance identification process
 - Strategically reviewing work practices
 - Preventing the escalation of minor issues into major problems
- Preparing standard forms – to assist staff record and report issues/complaints which are of concern to them
- Ensuring all staff committees are charged with the responsibility of identifying grievances as part of their standard charter – so attention is paid to the widest range of potential issues across the spread of the organisation.



Resolving grievances

Consultation can be used in the resolution of workplace grievances in the following ways:

- Generating formal, written ‘grievance resolution’ procedures – with input from staff and agreed to by them
- Making sure all staff are aware of what the ‘grievance resolution’ procedures are – and how they operate
- Applying the ‘grievance resolution’ procedures equitably – to all issues and personnel without fear or favour
- Using a ‘grievance resolution’ committee/body – comprising a blend of management and staff representatives to determine/resolve issues.

This committee/body should:

- Involve relevant stakeholders
- Seek *evidence* to use as the basis for decision making
- Work promptly
- Be accountable and honest
- Strive for openness and equity

- Record decisions and action taken
- Comply with all legislated requirements
- Sharing outcomes and decisions with other/all staff – to facilitate learning and understanding relevant to the issue
- Integrating lessons learned into standard operations – in terms of (for example) new/revised protocols, and inclusion of content into on-site training
- Following up with relevant parties – after resolution has occurred to determine if additional/alternative action is required.

Websites

More detail is available at:



http://www.industrialrelations.nsw.gov.au/oirwww/Employment_info/Recruitment_and_termination/Disputes_in_the_workplace.page - Disputes in the workplace

<http://www.wiseworkplace.com.au/knowledge-hub/investigation-practice/tips-grievance-handling> - Top ten tips on grievance handling

http://www.hru.uts.edu.au/docs/manual/6_13.pdf - Handling staff grievances: guidelines for supervisors

http://www.jcu.edu.au/policy/hr/procedures/JCU_134924.html - Resolving workplace grievances and complaints procedure

Consultation regarding the implementation of new work practices

Consultation regarding the introduction of new work practices could involve the use of:

- Staff briefings – to advise of practices which need to be implemented at short-notice
- Staff training sessions – to enable integration of new procedures with other existing protocols
- Staff meetings – to advise staff in a more detailed manner of:
 - Rationale for and benefits of new work practices
 - Transitional arrangements for implementation including proposed schedule
 - Support available to underpin the initiatives
 - Monitoring and evaluation protocols to be used
- Staff de-briefing sessions – to discuss implementation, problems encountered, need for refinement of protocols and other matters deemed relevant by those implementing the new work practices
- An 'Open door policy' by management – see section 1.5

- Meetings specially convened with staff to discuss the new work practices – where the sole topic of discussion/feedback is the new work initiative
- Management meetings –where an agenda item is created to allow discussion on the initiative
- Formal presentations – **by** staff and/or management **to** staff and/or management on implementation and results
- Visits by external stakeholders – to allow them to view implementation and observe the improvements brought about by the changes.

Work Projects

It is a requirement of this Unit you complete Work Projects as advised by your Trainer. You must submit documentation, suitable evidence or other relevant proof of completion of the project to your Trainer by the agreed date.

- 1.1 For the purpose of this Work Project you are required to identify/select a workplace with which must be approved by your Trainer and/or Assessor.

For the identified and approved workplace you are required to build a positive industrial relations climate and provide evidence (documentary and/or video as agreed with the Assessor) you have:

- Provided employees with accurate and impartial information on industrial matters likely to affect them
- Identified workplace changes or issues which may cause industrial unrest promptly and take appropriate action
- Identified potential causes of industrial unrest in external environments promptly and take appropriate action
- Applied conditions of employment in accordance with relevant legislation and industrial awards/agreements
- Implemented mechanisms for consulting with staff and facilitating two-way communication
- Ensured induction and training initiatives are used effectively to develop a competent workforce
- Utilised consultation processes for the identification and resolution of grievances and the implementation of new work practices.

Summary

Build a positive industrial relations climate

When building a positive industrial relations climate:

- Align activities with the agreed ASEAN 'Guidelines on Good Industrial Relations Practice'
- Identify and ensure thorough understanding of work instruments for all employees
- Gain comprehensive appreciation of all Conditions of Employment for all workers employed by the organisation
- Ensure Letters of Offer used by the business reflect the work contract/agreement relevant to the job being offered
- Maintain comprehensive, accurate and updated personnel files for all workers
- Prepare and maintain current Job Statements for all positions within the organisation
- Appreciate the total context of industrial relations as it applies to the individual industry/sector and workplace/organisation
- Identify and access a range of sources to capture up-to-date information relevant to industrial relations matters and obligations
- Be proactive in identifying workplace issues with the potential to cause industrial unrest
- Recognise options available for staff to take industrial action
- Seek to identify causes for all industrial unrest
- Strive to consult, communicate and collaborate with employees in order to respond to and avoid workplace industrial unrest
- Be aware of the potential for external factors to cause workplace-based industrial unrest
- Take action to ensure Conditions of Employment are applied in accordance with agreed statements
- Realise the penalties inherent in failing to comply with mandated industrial relations requirements
- Use a combination of activities including Induction and Orientation and training to help develop a competent workforce
- Apply consultative practices to identify and resolve workplace grievances
- Communicate with staff to facilitate introduction of new work practices/SOPs.

Element 2: Implement formal industrial procedures

2.1 Contribute to the development of formal industrial procedures in consultation with relevant parties

Introduction

Managers and supervisors may be required to assist with the development of various industrial procedures for implementation in their workplaces.

This section lists the stakeholders who may be involved in the process, explains actions involved in contributing to development, identifies a range of IR procedures which may need to be developed and lists keys in the development process.

Stakeholders

Those who may be involved in the development process may include:

- Employees from within the workplace – as a body, or their representatives
- Employee bodies – or union representatives
- Senior management of the organisation – or business owners, members of the Boards and/or line managers
- HR managers
- External professionals – with IR and HR expertise relevant to the topic/s being discussed/developed including employment/IR lawyers and consultants
- Government agencies and authorities – with specialist expertise and responsibility for areas being addressed.



Possible actions involved

Actions which are commonly associated with developing effective industrial relations procedures are:

- Commitment by management to develop IR procedures – in alignment with standard inclusive practices such as:
 - Notifying workers of intention to develop IR procedures
 - Encouraging workers to participate in with the process

- Providing resources for staff to actively engage
- Giving staff sufficient notice to prepare and attend meetings
- Prepare a plan for the process – which should:
 - Be developed in consultation with staff
 - Be shared with staff and contain a communication strategy
 - Contain timelines for action
 - Identify resources available
 - Schedule implementation activities
- Review and research of relevant existing documentation – such as:
 - Analysis of examples of IR procedures being used by other businesses – or suggested for use by government agencies or industry bodies
 - Reading of legislation – to determine and ensure compliance with mandatory requirements in this regard
 - Any documentation specified by the host country industrial relations systems
 - Perusal of award and enterprise agreements, and relevant industrial instruments
 - Identification of obligations under any Codes of Practice/Conduct used or subscribed to by the organisation
- Conduct of regular staff meetings during paid working hours – in order to:
 - Seek input from workers to draft procedures
 - Circulate draft procedures for responses from workers
 - Review and revise draft procedures on the basis of legitimate feedback received
 - Seek agreement from staff on final/revised procedures
- Preparation of formal written policies and procedures – to reflect and support the agreed procedures.



These formal written policies and procedures to:

- Be reviewed and approved by government authorities, union representatives, employee bodies and senior management/the Board
- Be integrated with other workplace protocols
- Be included as part of standard organisational Induction and Orientation and training
- Be made available readily to all staff through (for example) workplace posters, Staff Handbook, office intranet, inclusion in standard 'Policies and procedures manual'
- Be reviewed on a regular basis, at least annually.

Website

Check out the extra information at:

http://www.industrialrelations.nsw.gov.au/biz_res/oirwww/pdfs/workplace_pp.pdf -
Employment essentials: workplace policies and procedures

Range of procedures which may need to be developed

The range of procedures which can need to be prepared may vary between businesses and will often vary over time.

There is, however, commonly a need for the procedures to be developed to address the following Industrial relations issues:

- Grievance procedures – where employees have an issue they want to bring to management's attention for their consideration
- Dispute resolution – where an issue has become the focus of a dispute and requires attention in order to resolve the situation
- Termination of employment – where an employee is to be terminated and action needs to ensure the worker receives all the benefits they are entitled to under the circumstances
- Workplace change – where the organisation seeks to introduce change to the workplace (in terms of systems, protocols, layout, productivity, KPIs or any one of a vast list of potential matters) and there is a need to (for example) obtain input from staff to the change, plan and schedule the introduction of change and provide necessary support to enable the change and underpin a smooth transition
- Enterprise agreements and workplace bargaining – where employer and employees (or their representatives) negotiate terms and conditions of employment
- OHS – where management and workers consult and cooperate to provide a safe workplace
- Equal opportunity employment – where the rights of workers to gain employment, promotion and training based on their merits are protected
- Anti-discrimination – where employees are protected against workplace harassment and bullying
- Mediation, Conciliation and Arbitration – where issues which are unable to be satisfactorily resolved internally are made subject to external resolution
- Performance appraisals and Productivity – where the workplace performance of staff is evaluated to determine requirements for assistance and/or links to increased remuneration.



Keys in the development process

When developing formal industrial relations procedures to be used by the organisation it is essential to ensure the following:

- The 'Guidelines on Good Industrial Relations Practice' adopted by the ASEAN Ministers of Labour should provide the context – refer section 1.1
- The final procedures developed for implementation must be workable – they must be able to be implemented
- All legislated requirements must be complied with – to avoid penalties and discharge mandatory obligations
- All stakeholders are updated regarding the development process – and matters which have been resolved/decided, those presenting problems and new issues arising
- Final protocols must address the issues deemed important by the workforce – and not just what is important to management
- Final decisions taken about what is included (or excluded) from the IR procedures should be decided with reference to common sense, objectivity, inclusivity and the individual nature of each site-specific workplace
- All IR procedures must reflect and support/enable relevant employment instruments to operate – it is essential there is no conflict between the IR procedures and the content of the employment instruments
- Openness and honesty are fundamental to the process of development – there can be no truly fair and equitable outcome where this is missing
- *Implementation* of the procedures must follow from their *development* – the IR procedures must not be ignored
- There must be an awareness of the dynamic nature of the workplace – such that procedures to address new requirements can arise, and the need to refine existing protocols is ever-present in order to maintain their applicability and relevance
- Outcomes are communicated and promoted – so all staff (and managers and supervisors) are aware of what they are
- Monitoring activities to capture evidence – to serve as the basis of evaluating the effectiveness of the IR procedures should be developed as part of the process of developing the actual IR protocols
- Identification of potential issues and their subsequent *prevention* or *avoidance* should be the focus of all IR procedures – as opposed to allowing problems to occur and then applying protocols to *resolve* them
- Files should be maintained of all stages of the process – so there are records for future reference to assist with interpretation of intention and/or decisions about action to be taken
- Clarity of purpose and unambiguous statements of intent and action are vital – there must be no doubt regarding what is intended, when it applies, and who it applies to
- Employees always have the right to be represented – by a person of their choosing when they are engaged in any form of IR procedure
- Nothing in any IR procedure is allowable which enables, authorises, encourages or permits the use of coercion and/or victimisation of staff – as way of handling a workplace relations issue.



2.2 Use agreed procedures to resolve employee relations in accordance with enterprise policy and legal requirements

Introduction

When formal industrial relations procedures have been developed (and agree to) they will form the basis of resolving employee disputes and provide a shared platform for managing and maintaining workplace relations with employees.

This section focuses on the use of Dispute Resolution procedures to address employee issues.

Previously presented relevant information

At this stage it is worth re-visiting previous information presented in relation to Grievances in order to obtain a sound basis for considering Dispute Resolution.

Commitment by ASEAN Labour Ministers

The ASEAN Ministers of Labour agreed ('Guidelines on Good Industrial Relations Practice'):

- '... union representation, workers and employers should consult one another to manage labour disputes according to the terms and conditions set out by the laws and/or regulations of individual countries. This should include an adequate grievance handling mechanism to facilitate the amicable resolution of disputes'
- 'At the shop-floor level, various subjects of common interests to labour and management are discussed in bipartite mechanisms including productivity improvement, gain-sharing, recruitment and dismissal, safety and health and grievance handling.'
- 'It shall be ensured that during a labour dispute settlement process, the employers have to fulfil the workers' rights properly. Such processes and machineries also cover the minimization and prevention of conflicts such as by providing relationship development, training programs in problem-solving techniques to resolve problems on an ongoing basis, and assisting parties to navigate the process of change and jointly agree on a strategy to create or take advantage of new opportunities'.



Section 1.7

It is worthwhile re-reading section 1.7 in relation to:

- Procedures presented for 'Identifying grievances'
- Procedures listed for 'Resolving grievances'.

Context

For agreed procedures to be effective it is imperative the following keys apply:

- All personnel must be aware of the protocols that exist – employees and managers
- Internal training must educate the workforce in the application and operation of all agreed procedures
- There must be easy and unfettered access to copies of all protocols – for all of the workforce
- Employees must be comfortable raising an issue safe in the knowledge they will not be victimised or harassed as a result
- All agreed policies and procedures must be adhered to – without exception, fear or favour
- Employees must be free to have their interests represented by a nominated third party
- All agreed protocols (policies and procedures) must be subject to regular review
- Agreed protocols must be revised where an identified legitimate reason to do exists.



Dispute Resolution

The information below is taken from and/or based on details contained in 'Best Practice Guide 10: Effective dispute resolution' (an Australian Government website of The Fair Work Ombudsman) available through <http://www.fairwork.gov.au/about-us/policies-and-guides/best-practice-guides/effective-dispute-resolution>.

The advice presented is intended to be used as the basis for an effective organisational model or template for Dispute Resolution.

“Why work at best practice?”

Effective dispute resolution can help employers to maintain good relationships with their employees by dealing with workplace issues at an early stage. Employees will likely be more cooperative and productive if they know that their grievances will be taken seriously by the employer and there is the opportunity for an independent party to assist in resolving the dispute if it cannot be resolved at the workplace.

A good dispute resolution process with a focus on effective resolution at the workplace level may help to avoid the costs of resolving a claim externally; for instance, via arbitration ... or through litigation ...”

“What is dispute resolution?”

Dispute resolution refers to the processes by which disputes are brought to an end. This can occur through:

- A negotiated outcome, where the parties concerned sort out things themselves
- A mediated outcome, where the parties use the services of an independent mediator to help them arrive at their own agreement, or
- An arbitrated or adjudicated outcome, where an independent arbitrator or court determines how the dispute is to be resolved and makes a binding decision or order to this effect.”

“What are the features of a good dispute resolution process?”

A best practice dispute resolution process should:

- Be simple
- Allow appropriate stages so that matters can, wherever possible, be resolved at the workplace
- Encourage parties to agree on a process that suits them if the dispute reaches [the stage external authorities need to become involved]
- Provide [external authorities] with the necessary discretion and power to ensure settlement of the dispute if the dispute remains unresolved after the early stages of the dispute resolution procedure have been attempted.



Best practice dispute resolution outcomes should be:

- Quick - the issues should be resolved quickly rather than allowing them to escalate through inaction
- Fair - all relevant parties should be consulted so that all sides of the story are taken into account
- Handled sensitively - disputes should, where possible and appropriate, be resolved in a confidential context in order to minimise impact on employees not affected by the dispute
- Transparent - the procedure should be made known to every employee.

Dispute resolution procedures should not interfere with the continued operation of the business where possible. Any dispute resolution clause in an agreement, contract or policy should require that work is to continue normally during the dispute resolution process subject to any reasonable concerns about health and safety.

Generally, [legislation] does not authorise employees to stop performing work while a dispute is being resolved.”

“The typical process explained

First employee(s) and/or any employee representative meet(s) with the employee's direct supervisor to discuss a problem.

The supervisor listens carefully to the employee(s) (and/or their representative) and together they try to resolve the dispute. If the supervisor and employee are unable to resolve the dispute or it is not appropriate that the supervisor deal with it, the matter should be referred to senior management.

(See next; or Resolution)

Senior management listens to the employee's concerns and either resolves the dispute or refers the matter to more senior management.

(See next; or Resolution)

More senior/national officers listen to the employee (and/or their representative) and attempt to resolve the dispute. It is either resolved or referred to an independent body.

(See next; or Resolution)

An independent conciliator or mediator assists to resolve the dispute.

Resolution

Problems are solved and healthy working relationships are maintained.”

“Can independent persons help with a dispute?”

Where a term in an award, an enterprise agreement or a contract of employment or other written agreement refers a dispute to an independent person:

- The person may, where agreed to by the parties, deal with the dispute via arbitration and make a binding decision about the dispute
- The person must not deal with a dispute if it is about whether an employer had reasonable business grounds to refuse a request by an employee for flexible working arrangements or for an extension of unpaid parental leave beyond 12 months unless provided for in a contract of employment, enterprise agreement or some other kind of written agreement that allows them to deal with the dispute
- Generally, an independent third party can only assist the parties to resolve their dispute in accordance with the powers that are expressly conferred by the relevant clause of the award, agreement, or other written agreement.

Checklist for dispute resolution best practice

Employers working at best practice will:

- Ensure they have a simple, quick, fair, confidential and transparent dispute resolution procedure in place, whether it be included as part of a modern award, enterprise agreement, company policy, employment contract, or other industrial instrument
- Ensure employees are made aware of the applicable dispute resolution procedures.

Where a dispute has arisen:

- Work towards solving the problem and maintaining healthy working relationships
- Determine which dispute resolution procedure applies
- Comply with the correct procedure quickly and fairly
- Use best efforts to resolve the dispute at the workplace
- Where this is not possible, refer the dispute to an independent mediator or arbitrator such as [local employment authority] with the power to deal with the dispute.”



Additional websites

Extra information is available through:

http://www.ilo.org/wcmsp5/groups/public/---asia/---ro-bangkok/documents/publication/wcms_185838.pdf - Building better industrial relations in an integrating ASEAN

<https://www.fwc.gov.au/resolving-issues-disputes-and-dismissals/workplace-issues-disputes/resolving-issues-at-the-workplace> - Resolving issues at the workplace

<https://www.fwc.gov.au/resolving-issues-disputes-and-dismissals/resolve-issue-or-dispute> - Resolving issues, disputes and dismissals.

2.3 Monitor agreed processes and make appropriate adjustments in consultation with relevant parties.

Introduction

The formal industrial procedures which have been agreed to need to be monitored and, where necessary, adjusted to accommodate workplace issues which have emerged over time.

This section discusses the monitoring and adjustment process.

Monitoring procedures

Monitoring of agreed procedures must ensure:

- Standard monitoring practices are designed and developed to meet the individual needs of each suite of IR agreed procedures generated by the organisation – these practices may include:
 - Use of observers
 - Recording of meetings
 - Pre-meeting briefings – to ensure participants are certain/aware of relevant protocols to be applied
 - Use of 360° feedback
- Inclusion of staff in the development of monitoring procedures – to ensure their considerations are addressed as part of the overall process
- Development of draft monitoring protocols – which are distributed to all stakeholders for comment and then are reviewed and revised on the basis of feedback and comment received
- Monitoring protocols are included within and as part of agreed relevant industrial relations procedures – so there is a definite and deliberate link between implementing and monitoring these procedures
- Trials and tests are conducted of monitoring protocols – to:
 - Prove their suitability and evidence-gathering capacity
 - Give personnel experience in their implementation
 - Provide a further possible basis for the revision/fine-tuning of protocols
- Monitoring activities are employed every time the procedures are utilised – without exception
- Emphasis on objectivity – in the monitoring procedures used and in capturing evidence/feedback as part of the monitoring process
- Involvement of employees in the monitoring process – to demonstrate transparency and honesty in implementation of procedures



- Overview of the implementation of procedures – to ensure required protocols are adhered to
- Sufficiency of data/information gained as a result of monitoring activities – to allow informed and valid decisions to be made on the basis of the data/evidence captured
- Analysis and evaluation of application of procedures – to determine deficiencies and/or need for revision/adjustments
- Documentation of evidence gathered as part of the monitoring process – so it can serve as a basis for later reference
- Compliance with any mandatory obligations imposed by host country legislation – so the organisation discharges responsibilities imposed by local IR requirements
- Application of monitoring activities does not interfere with or influence ‘natural justice’ and the intended operation of the agreed procedures – that is to say, the monitoring protocols must serve implementation of the agreed procedures and not dictate or determine its implementation
- Results of monitoring procedures must be released to employees as standard practice (subject to suppression of privacy and confidentiality imperatives) – to demonstrate full disclosure, accountability and transparency.

Adjustment procedures

Basic options

Adjustments to agreed procedures comprise three fundamental options:

- Revisions to existing protocols – where small changes are made to current protocols to improve or update their effectiveness and relevance
- Deletion of existing protocols – which may be required when a topic is removed from workplace IR concerns as a result of legislated changes and/or changes to employment instruments
- Creation of new protocols – to support new issues raised by legislation, work instruments or workplace concerns.



It is also important to understand:

- Organisations should strive to create and/or adjust/amend their own ‘agreed procedures’ – while in many cases the relevant government authorities may have standard protocols which can be used by businesses who elect not to develop their own procedures
- External government authorities have the power to require organisations to change their ‘agreed procedures’ if they deem this to be necessary – by issuing relevant ‘orders’ to do so
- Fines and/or other penalties can be imposed by authorities where organisations fail to establish and/or implement suitable ‘agreed procedures’.

Standard requirements

With reference to making adjustments to agreed industrial relations procedures, the points set out below form an effective and ethical approach:

- All agreed procedures must be subject to regular and scheduled review – this schedule must be contained within the relevant protocols
- Timing considerations for review need to accommodate four standard requirements – that is, reviews should occur:
 - At scheduled times – annually is a useful standard even where there has been no need to use the agreed procedures/monitoring activities
 - After every implementation of agreed procedures/monitoring activities
 - Whenever there is alteration to legislation which impacts existing agreed procedures/monitoring activities
 - Following amendments to employment instruments which necessitate changes to agreed procedures/monitoring activities
- All revisions must be preceded by a review – to enable relevant evidence/information to be captured and/or assembled to serve as the basis for decision making
- All decisions to amend exist arrangements must be fact-based – and be founded on objective evidence as opposed to supposition
- Staff (or their nominated representatives) must be an integral part of the review and/or revision process – to demonstrate inclusivity, transparency and accountability
- All protocols followed for the development of the original procedures must be adhered to when undertaking revisions/amendments – that is, there is a need to:
 - Develop a draft
 - Circulate the draft for comment/feedback
 - Revise draft as/if required
 - Obtain agreement/approval for revised draft/s
- All amendments need to be communicated to all stakeholders – which may require:
 - Integration of revised protocols into Staff Handbooks, policies and procedures
 - Inclusion of amendments into internal training
- Changes to protocols need to be ‘version controlled’ – so there is clear detail regarding:
 - Date protocols were reviewed
 - Brief overview of changes made
 - Date of next scheduled/annual review.



2.4 Identify the need for and access specialist assistance in industrial relations matters when appropriate

Introduction

It is common for organisations to need advice from specialists in relation to industrial relations matters.

This section identifies external specialists whose help may be required and gives an idea of the assistance they can provide.

External specialist assistance

While most organisations traditionally have a range of experienced HR personnel on their staff it is to be expected even the largest organisations will need to use the services of *external* specialists to assist with a range of IR issues from time-to-time.

Generic classification of external specialists

These specialists may generally be classified as:

- Private enterprise operators
- Government agencies and authorities.

Private enterprise operators

These are individuals and businesses who operate on a fee-for-service basis meaning the organisation pays them for the work they perform.

Fees are usually calculated:

- On a project basis
- On an hourly basis.

Some businesses may engage specialists on a 'retainer' basis meaning the specialist individual/business will undertake certain nominated tasks on an ongoing basis for a set fee paid to them (say) every month, regardless of whether or not they actually do any work.

Specialists may provide services relating to:

- Providing IR consulting – in relation to areas such as:
 - Managing workplace relations
 - Developing and maintaining Human Resources
 - Negotiating workplace instruments
 - Providing conciliation, mediation and arbitration services
 - Establishing relevant work-based groups/teams to facilitate optimum workplace industrial relations



- Supplying training-related services – with reference to:
 - Developing management expertise in workplace industrial relations
 - Informing workers of their IR rights and obligations
 - Providing general awareness training
 - Conducting relevant training in terms of practical work-based role plays and/or case studies
 - Preparing stakeholders to optimise their contribution to and participation in a consultative and collaborative workplace
- Undertaking resource development – to assist with all activities inherent in:
 - Developing suitable policies
 - Writing SOPs and agreed procedures to support/enable implementation of policies
 - Drafting legal employment instruments
- Offering legal advice – in terms of:
 - Mandatory obligations
 - Compliance
 - Plans for negotiation of industrial matters
 - Penalties
 - Options available to the organisation to respond to workplace issues
- Providing legal services – which may relate to:
 - Making presentations to bodies, representatives or authorities
 - Lodging applications and/or employment instruments
 - Registering agreed procedures with relevant agencies and/or other bodies
 - Advocating on behalf of the organisation
- Record keeping – in relation to:
 - Personnel files
 - Wages, taxation and superannuation
 - Training
 - Leave
 - Promotion
- Providing ongoing employment-related services – such as:
 - Recruitment and staff selection
 - Staff discipline and termination
 - Staff performance and appraisal
 - Dealing with unions and other groups/representative bodies.



Businesses seeking to engage the services of external IR specialists should:

- Contact their local peak industry body – for names of people/businesses together with their contact details
- Speak to people within their professional network of contacts – to identify businesses/personnel used by other businesses and obtain recommendations from known industry contacts
- Strive to engage only the services of ‘suitable’ individuals/businesses – which means aiming only to:
 - Employ those with previous experience in the areas where assistance is being sought
 - Hire businesses with experience working within the host country where the organisation is operating
- Conduct a web search – to determine:
 - The services provided by potential businesses
 - Experience and expertise of organisations
- Obtain a written quotation/estimation for work to be done – so there is a better understanding of costs and time involved.

If a business/private individual fails to perform their work competently, professionally and legally, the organisation can usually take action against them to recover losses and/or sue for damages.

Government agencies and authorities

Government agencies and authorities are often statutory bodies (bodies created under statute/legislation) formed by governments to oversee and administer the implementation of government policies in areas such as employment, training, and workplace safety.

The majority of their advice is provided free-of-charge (being paid for out of normal taxation revenue and/or from industry levies).

In some/limited cases they also will offer fee-for-service advice.

Traditional services provided by government agencies can include:

- Hard copy information – such as:
 - Copies of legislation and regulations
 - Handouts including Alerts and Advice Sheets
 - Sample/recommended Codes of Practice
 - Sample employment instruments
 - Samples of approved ‘agreed procedures’
- Verbal advice – from officers and Inspectors, with reference to matters such as:
 - Interpretation of legislation and terminology
 - Anecdotal information together with historic and workplace-specific context
 - Suggestions for action



- Workplace-specific visits – for the purposes of:
 - Conducting inspections
 - Examining documentation
 - Providing training
- Online references – which will address topics identified above plus:
 - Links to other relevant sites
 - Reports and statistics
 - Industry initiatives – current and proposed
 - Support and funding available to assist businesses with implementation and compliance
 - Online access to a variety of mandatory reporting requirements as well as application and/or payment protocols
 - General and specific enquiries.



It should be noted most government agencies/authorities **cannot have legal action taken against them** if they provide advice which proves to be incorrect and/or which causes damage or loss to the organisation.

Work Projects

It is a requirement of this Unit you complete Work Projects as advised by your Trainer. You must submit documentation, suitable evidence or other relevant proof of completion of the project to your Trainer by the agreed date.

- 2.1 For the purpose of this Work Project you are required to identify/select a workplace with which must be approved by your Trainer and/or Assessor.
 - 2.2 This workplace may be the same as the one used for Work Project 1.1 or it may be a different workplace.
 - 2.3 For the identified and approved workplace you are required to implement formal industrial relations procedures and provide evidence (documentary and/or video as agreed with the Assessor) you have:
 - Contributed to the development of formal industrial procedures in consultation with relevant parties
 - Used agreed procedures to resolve employee relations in accordance with enterprise policy and legal requirements
 - Monitored agreed processes and made appropriate adjustments in consultation with relevant parties
 - Identified the need for and accessed specialist assistance in industrial relations matters when appropriate.
-

Summary

Implement formal industrial procedures

When implementing formal industrial relations procedures:

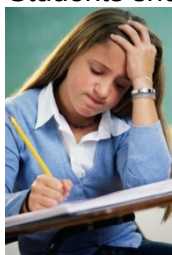
- Identify, communicate with and involve all stakeholders
- Create regular opportunities for contact with key players
- Allocate sufficient time and effort towards this aspect of management
- Start from a solid foundation of understanding applicable employment instruments
- Meet regularly with staff
- Prepare a suite of relevant policies and procedures to support/enable required industrial relations
- Involve staff in the development of industrial relations protocols and ensure outcomes are communicated and integrated into SOPs
- Apply 'agreed procedures' equitably without fear or favour to identify and resolve workplace issues
- Seek to resolve industrial issues promptly and internally
- Take action to monitor application/implementation of 'agreed procedures'
- Review 'agreed procedures' on a regular basis
- Revise 'agreed procedures' as necessary
- Research external IR assistance which is available to the organisation
- Use external industrial relations expertise as required/necessary.

Presentation of written work

1. Introduction

It is important for students to present carefully prepared written work. Written presentation in industry must be professional in appearance and accurate in content. If students develop good writing skills whilst studying, they are able to easily transfer those skills to the workplace.

2. Style



Students should write in a style that is simple and concise. Short sentences and paragraphs are easier to read and understand. It helps to write a plan and at least one draft of the written work so that the final product will be well organised. The points presented will then follow a logical sequence and be relevant. Students should frequently refer to the question asked, to keep 'on track'. Teachers recognise and are critical of work that does not answer the question, or is 'padded' with irrelevant material. In summary, remember to:

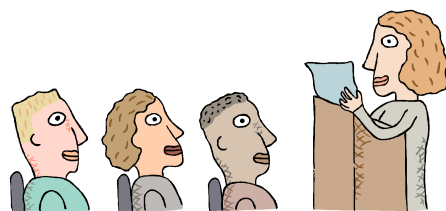
- Plan ahead
- Be clear and concise
- Answer the question
- Proofread the final draft.

3. Presenting Written Work

Types of written work

Students may be asked to write:

- Short and long reports
- Essays
- Records of interviews
- Questionnaires
- Business letters
- Resumes.



Format

All written work should be presented on A4 paper, single-sided with a left-hand margin. If work is word-processed, one-and-a-half or double spacing should be used. Handwritten work must be legible and should also be well spaced to allow for ease of reading. New paragraphs should not be indented but should be separated by a space. Pages must be numbered. If headings are also to be numbered, students should use a logical and sequential system of numbering.

Cover Sheet

All written work should be submitted with a cover sheet stapled to the front that contains:

- The student's name and student number
- The name of the class/unit
- The due date of the work
- The title of the work
- The teacher's name
- A signed declaration that the work does not involve plagiarism.

Keeping a Copy

Students must keep a copy of the written work in case it is lost. This rarely happens but it can be disastrous if a copy has not been kept.

Inclusive language

This means language that includes every section of the population. For instance, if a student were to write 'A nurse is responsible for the patients in her care at all times' it would be implying that all nurses are female and would be excluding male nurses.

Examples of appropriate language are shown on the right:

Mankind	<i>Humankind</i>
Barman/maid	<i>Bar attendant</i>
Host/hostess	<i>Host</i>
Waiter/waitress	<i>Waiter or waiting staff</i>

Recommended reading

Note: all Recommended Reading is sourced from 'Trove: National Library of Australia' at <http://trove.nla.gov.au/>.

Lussier, Robert N 2015, *Management fundamentals: concepts, applications, & skill development*, Sixth edition, Thousand Oaks, California SAGE.

McShane, Steven Lattimore & Von Glinow, Mary Ann Young, 1949- 2014, *Organizational behavior*, 2nd ed, Mcgraw-Hill/Irwin, New York.

Miller, Larry S & Braswell, Michael 2011, *Effective police supervision. Study guide*, 6th ed, Anderson ; Oxford : Elsevier Science [distributor], Burlington, MA.

Robbins, Stephen P & DeCenzo, David A, (author.) & Coulter, Mary., (author.) 2015, *Fundamentals of management: essential concepts and applications*, Ninth edition, Harlow, UK Pearson Education.

Scott, Vivian 2015, *Workplace conflict resolution for dummies*, Richmond, Vic. John Wiley and Sons Australia, Ltd.

Shockley-Zalabak, Pamela 2015, *Fundamentals of organizational communication: knowledge, sensitivity, skills, values*, Ninth edition, Boston Pearson.

Trainee evaluation sheet

Manage and maintain workplace relations

The following statements are about the competency you have just completed.

Please tick the appropriate box	Agree	Don't Know	Do Not Agree	Does Not Apply
There was too much in this competency to cover without rushing.	☐	☐	☐	☐
Most of the competency seemed relevant to me.	☐	☐	☐	☐
The competency was at the right level for me.	☐	☐	☐	☐
I got enough help from my trainer.	☐	☐	☐	☐
The amount of activities was sufficient.	☐	☐	☐	☐
The competency allowed me to use my own initiative.	☐	☐	☐	☐
My training was well-organised.	☐	☐	☐	☐
My trainer had time to answer my questions.	☐	☐	☐	☐
I understood how I was going to be assessed.	☐	☐	☐	☐
I was given enough time to practice.	☐	☐	☐	☐
My trainer feedback was useful.	☐	☐	☐	☐
Enough equipment was available and it worked well.	☐	☐	☐	☐
The activities were too hard for me.	☐	☐	☐	☐

The best things about this unit were:

The worst things about this unit were:

The things you should change in this unit are:

Trainee self-assessment checklist

As an indicator to your Trainer/Assessor of your readiness for assessment in this unit please complete the following and hand to your Trainer/Assessor.

Manage and maintain workplace relations

		Yes	No*
Element 1: Build a positive industrial relations climate			
1.1	Provide employees with accurate and impartial information on industrial matters likely to affect them	☐	☐
1.2	Identify workplace changes or issues which may cause industrial unrest promptly and take appropriate action	☐	☐
1.3	Identify potential causes of industrial unrest in external environments promptly and take appropriate action	☐	☐
1.4	Apply conditions of employment in accordance with relevant legislation and industrial awards/agreements	☐	☐
1.5	Implement mechanisms for consulting with staff and facilitating two-way communication	☐	☐
1.6	Ensure induction and training initiatives are used effectively to develop a competent workforce	☐	☐
1.7	Utilise consultation processes for the identification and resolution of grievances and the implementation of new work practices	☐	☐
Element 2: Implement formal industrial procedures			
2.1	Contribute to the development of formal industrial procedures in consultation with relevant parties	☐	☐
2.2	Use agreed procedures to resolve employee relations in accordance with enterprise policy and legal requirements	☐	☐
2.3	Monitor agreed processes and make appropriate adjustments in consultation with relevant parties.	☐	☐
2.4	Identify the need for and access specialist assistance in industrial relations matters when appropriate	☐	☐

Statement by Trainee:

I believe I am ready to be assessed on the following as indicated above:

Signed: _____

Date: _____

Note:

For all boxes where a **No*** is ticked, please provide details of the extra steps or work you need to do to become ready for assessment.

William
Angliss
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